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VAJIRAM AND RAVI

POLITICAL SCIENCE

OPTIONAL

INDIAN POLITICAL THOUGHTS

(PART-II)

HANDWRITTEN

CLASS NOTES

2017

BY SUBHRA RANJAN

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GRASSROOTS DEMOCRACY

Syllabus

- Panchayati Raj & Municipal Government
- significance of 73rd and 74th Amendments.
- Grassroot Movements.

What is Grassroot Democracy?

Grassroot Democracy is the essence of Democracy. It is an empowerment of people at the grassroot level. Grassroot democracy aims at empowering the powerless & giving voice to voiceless.

The idea of Swaraj given by Gandhi, radical democracy given by M. N. Roy & Antodaya given by Dindayal Upadhyaya are Indian versions of Grassroot Democracy

Why Grassroot Democracy?

Advantages:

(i) Good Governance: It is not possible without community participation. Good Governance require transparency & accountability.

(ii) Sustainable Developement:
Agenda-21 adopted at Rio Summit 1992 recognise the necessity of community participation.

(iii) Political Education & Training:
Democracy depends upon active citizenship. Hence institutions have to be created for the participation of people they have to be given capacity to make meaningful participation.

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→ It is said that Nation might establish free Govt. but without municipal Institutions it cannot achieve the spirit of liberty.

PANCHAYATI RAJ

Q. Discuss the Evolution of Panchayati Raj in India and what are the causes for the weaknesses of Panchayats?

Q. Give the assessment of the working of Panchayats in the last 25 years.

- History of Panchayati Raj =

At the time of Independence there were two schools of thought w.r.t. the form of Govt. and strategy of developement:

① Gandhiyan school of Thought
- Gandhiyan's favoured minimum state. They favoured democratic decentralisation.

② Modernists school of Thought -
Nehru & Ambedkar - preferred centralised federation and state led developement.

→ Gandhians lost the debate & Panchayati Raj found place in Art. 40, Part IV of the Indian constitution a non-enforceable part. Atleast rural development was in the minds of leaders, nobody

local self govt

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was concerned with urban development. Urban Administration remain more neglected. If Panchayats could find place in Directive Principles Municipalities could not find place in even DPSP. Municipal Administration is just mentioned in state list.

What are Panchayats?

There is a lack of clarity w.r.t. the Panchayati Raj institutions & the purpose of these institutions.

Since beginning Panchayats are seen as the agencies of rural developement. though Art. 40 projects Panchayats as an institution of self govt. 73rd Amendment Act, defines panchayats as the institutions of self govt. for rural areas.

Some act explain power, functions & responsibilities of Panchayat's The prime responsibility of panchayats is:

(a) Prepare plans for social & economic developement of rural areas.

(b) Implementation of schemes for social & economic developement of rural areas.

Thus, Panchayats role has been made limited only as developement agencies they have not been given any police functions or regulatory powers.

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Evolution of Panchayats:

Phase I - 1960s - phase of Enthusiasm

Phase II - 1970s & 80s - phase of stagnation.

Phase III - 1990s - phase of Revival

Phase IV - 21st century - phase of disillusionment

Manishankar Ayyar committee 2012 has suggested that disillusionment is prevailing with the working of panchayats. committee also suggest that the outcome of 73rd Amendment Act has been the decentralisation of Corruption rather than Democratic Decentralisation It suggest that we have introduced Bad Panchayati Raj which is worse than no Panchayati Raj.

Phase I -

Pandit Nehru rejected Gandhian Approach to development. He started a highly ambitious program of rural developement based on the philosophy of 'Developement Administration'. Civil Servants to be treated as the Vanguard of India's 'Silent Revolution'. Nehru inaugurated community development programme. Entire country was devided into developement blocks. headed by Block Developement officer. (BDO). BDO was to act as the friend, Philosopher & Guide of the people in rural areas. He was given the task to create awareness among people in

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rural areas about national plan. Motivate people for participation. Provide extension services. Will provide trainning & resources to the people in rural areas. Community developement programme failed to achieve objectives as neither Bureaucracy has required mindset to provide leadership to people nor people could communicate with the officials the only achievement of community development program was the establishment of infrastructure for the purpose of developement. Planning commission had set up an committee which gave report in 1957. Balvant Ray Mehta Committee has suggested that community development takes place only when community participates & for that it recommended the introduction of 3 tier panchayati Raj institutions as the representative bodies. Pandit Nehru left his apprehension against Panchayats. In 1959 on 2nd October the inaugurated Panchayati Raj at Nagore in RJ. It has created lot of enthusiasm in the country & almost all states introduced panchayats.

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Phase II - Phase of Stagnation - 70s & 80s Lecture 3

17/03/2017

Why stagnation ?

Internal as well as external reasons.

(1) Internal Reasons :

As soon as Panchayats came into existence its positive outcome started appearing. This has made State leadership & Bureaucracy insecure.

Why state leadership was insecure ?

(i) New grassroot leadership started emerging, traditional elites became apprehensive.

(ii) In India federation is tilted towards union, States are often called as 'Glorified Municipalities'; since States are expected to transfer funds, functions & functionaries, if they transfer, they will be loosing the significance. Hence, till the time union does not devolve powers, States will be reluctant

Why Bureaucracy became apprehensive ?

Bureaucracy has not been just non-supportive, it has been 'Hostile' towards the panchayats. It amounts the shifting of power & resources from the hands of Bureaucracy into the hands of people's representatives. one of the reason for failure of panchayat is from non-co-operation from Bureaucracy.

Union govt. has also not shown the required will for devolution of powers to lower levels. In fact union govt. has started centralising drives. The actions

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of union Govt. have actually given rise to regional sentiments. In the name of curbing Successionism union govt. kept on strengthening its power & undermining to democracy.

Wars with China & Pakistan also legitimised union Govt's centralising drives.

Indications of stagnation -

(i) Many panchayat's were dissolved without reason.

(ii) Re-elections did not take place, same panchayat continued beyond the expiry of the term.

(iii) Panchayats were not given clear mandate, functions, funds & functionaries.

(iv) In the absense of land reform, the social structure at the grassroot level did not changed. Panchayats continued to be dominated by the dominant class/ castes.

Phase III - phase of Revival - Mid 80s & 90s.

Rajiv Gandhi Govt. started political & economic liberalisation. It has set up L.M. Singhavi Committee.

L.M. Singhavi committee recommended to give constitutional status to panchayats. Rajiv Gandhi Govt. introduced a very revolutionary bill ie. 64th constitution amendment bill. This bill was opposed by the state govts. & could not paseed in RS.

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Why?
At that time huge trust deficit was existing b/w Union Govt. & state Govts.
since Bill was giving real powers to Panchayats, State govts. interpreted it as an attempt to marginalise State Govts.

Narsimha Rao Govt. was successful in getting 73rd Amendment Act passed by the State Govts.
How it was made possible?
The provisions on which state govts. had objections were made voluntary.
Why Govt. took the initiative?
In India panchayati Raj experiement is entirely a supply driven initiative rather than demand driven. This factor is in itself the cause of weakness.

Even in 1990s Panchayati Raj was introduced more because of external factors:

(i) Donor agencies imposed conditionalities to introduce Good Governance.

(ii) India has been party to Rio Summit 1992. Agenda 21 recognised that no sustainable development is possible without community participation.

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Phase IV - 21st century - phase of Disillusionment

Even after 25 years of the existence of Panchayats. Panchayats have failed to make any qualitative difference w.r.t. the quality of life in rural areas. Manishanka Ayyar committee recognised that disillusionment is prevailing towards panchayats. People feel that Panchayats have resulted into the decentralisation of corruption rather than decentralisation of power. Nexus has been developed between Panchayat Head & State Bureaucracy.

- Manishankar Ayyar committee has suggested that there is a conspiracy against Panchayats in the country. Even Ashok mehta committee set up by Janata Party Govt. in its report 1977 has mentioned about the conspiracy against Panchayats. According to the, Manishankar Ayyar committee, 'Bad Panchayati Raj' is worse than no panchayati Raj' 73rd Amendment Act does not introduce Good Panchayati Raj & that is the reason that today there has been a question mark on idea of people lead developement.

- 73rd Amendment Act.

Q. Critically analyse the strengths & weaknesses of 73rd Amendment Act.

Q. To what extent it is appropriate to say that 73rd Amendment Act is a half baked cake.

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73rd Amendment Act have been projected by the govt. as a big milestone in India's journey towards Democracy. However, for advocates of democratic decentralisation it remains a half baked cake. It is said that 73rd Amendment Act only creates the skeleton. It has left the infusion of flesh & blood on the will & capacity of the state govt. 73rd Amendment Act has created only the structure but has not provided clear constitutional mandate for Panchayats.

- Strengths of 73rd Amendment Act.

(i) Uptill now it was not mandatory to constitute Panchayats. Now it has become mandatory to constitute three tier panchayati Raj in all states with few exceptions.

→ Weakness

(i) It creates the structure, it also creates 11th schedule with 29 subjects, However it does not result into Panchayats getting automatic powers on the subjects. It has been left on the state legislature as to which powers they want to devolve. Panchayats in different states are in different level of devolution.

→ Suggestion:

(i) All states should go for Kerala model. Kerala Model is called as 'Big Bang Approach' which means overnight devolution.

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→ Strength:

② It creates a uniform 3 tier system throughout the country.

→ Weakness:

② It is not clear as to which level of panchayat is responsible for which function. There is a variation among states. Hence, the purpose is lost.

→ Suggestion:

② Activity mapping of the 3 levels by applying the principle of subsidiarity.

→ Strength:

③ Regular Elections: major reason for stagnation of Panchayats was absence of regular elections. Hence, 73rd Amendment Act introduces state election commission.

→ Weakness:

③ State election commission is not autonomous as Election Commission. So, most of the situations, there has been controversies in Panchayat Elections. Eg. WB- controversy.

→ Suggestion.

③ It is suggested to bring State Election commission under administrative supervision of Election commission.

→ Strength:

④ Composition

It provides for reservation for weaker section.

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→ Weakness:

④ Constituency is reserved only for one term. It is suggested that the constituency should be reserved at least for two terms.

Reservation for women is not in proportion to the population.

However, the major concern is that the reservation in itself does not ensure participation. There have been examples in the state of Tamil Nadu where the members of upper caste didn't allow dalit members to participate in the meeting including chairperson.

The studies in western up show that the women members have been called when some women related issue or dispute has come to panchayat.

→ suggestion:

④ Amendment should be made which should make it mandatory that no meeting will take place without the presence of specified no. of the members of Dalit Tribal community & women. Another weakness is that act permits the presence of MPs, & MLAs, MNCs in Panchayats except village panchayats with right to vote. This has negative impact on the autonomous choice of panchayat representatives.

→ strength:

⑤ Funding: Act gives additional responsibility to Finance commission & creates a dedicated body ie. State Finance commission for Panchayat Finances.

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→ Weakness

⑤ It is not as autonomous as Finance Commission.
- There is a lack of capacity & expertise at the state le
- 14th FC has highlighted the practice of state Govts. not tabling the reports of state FC. 14th FC also suggested Harmonisation of the term of state FC. and FC.

→ Strength & Weakness

⑥ Auditing: Corruption in Panchayats is always been matter of concern. Act does mention the issue of Auditing of Panchayats Funds but leave it entirely on the state legislature. Most of the states have given auditing to CAG. CAG has gone for social auditing. There is a lack of capacity among the people w.r.t. social auditing.

→ Suggestion:

⑥ Govt. of Kerala has introduced the institution of Panchayats ombudsman. Similar institution should be introduced in other states.

Gramsabha → example of Direct Democracy → not direct election

→ Strength

⑦ Planning: Act introduces the concept of District planning or Bottom up planning. It also provides for District Planning Committee.

→ Weakness:

⑦ District planning has been almost not existent even after 25 years. Initially states were reluctant to constitute or introduce District Planning Commission.
- Bureaucracy does not co-operate.
- Representatives lack capacity.

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→ Strength:

⑧ Introduction of Direct Democracy.
Gram Sabha is a institution of Direct Democracy and the soul of panchayati Raj institution.
It is mandatory to constitute Gram sabha to all panchayats.

→ Weakness:

⑧ Act does not define the powers & functions of Gram-Sabha.
- There is one Gram sabha for all villages coming under the panchayat. It is suggested to create Gram sabha for all villages.
- Normally 2 meeting of Gram sabha takes place in a year which is not enough.
- As reported by Manishankar Aiyar Committee bogus meetings takes place. In most of the occasions contractors men participate in social auditing. It is suggested that video recording of Gram sabha meeting should takes place. It is also suggested that like PESA Act, which clearly defines the powers of Gram Sabha. 73rd Amendment Act should be amended to give clear mandate to Gram sabha.

→ Strength:

⑨ Earlier panchayats were kept dissolved but now it is mandatory to conduct elections within 6 months of dissolution of panchayat for a remaining period.

→ Weakness:

⑨ Act does not tells the grounds of dissolution.
Unnecessary discrimination has been made b/w panchayats & municipalities. Municipalities have been given opportunity to present their case before dissolution which is denied to panchayats.

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→ Suggestion:

(9) Make Kerala Act as a Model Panchayati Raj & introduc in all states'.

- Adequate steps for capacity building of the members of Panchayats.
- Adequate devolution of funds, functions & functionarie
- Civil society should create awareness & grassroot movement for empowerment of Panchayat.

→ Punchi Commission has suggested -

(i) creation of legislative councils in all states, change th composition. make it a chamber representing the local self institutions only. Like Rajya sabha, legislati ve council should put pressure on legislative assemt ly for devolution of power.

(ii) It has soggested to create a watch dog body i.e. National Commission for Panchayats to review the working of safeguards or panchayats.

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MUNICIPAL GOVERNANCE

Municipal Governance has been more neglected area. It is surprising that despite having the historical tradition of an extremely advanced municipal administration. The leaders of modern India have neglected the issue of urban developement & even when the most of the leaders are from urban background. Indus valley civilisation was urban civilisation with exceptional town planning. During the time of maurya's, Gupta's, Vijayanagar empire, Chola's there was strong urban administration with vibrant cities. Even British govt has taken measures for municipal administration. municipalities have been grossly neglected by successive govt in Independent India. According to 2011 census, 31.16% of Indian population is living in urban areas. More than 377 mn people live in urban areas. The urban population of Delhi is 16.3 mn. The urban population of Bangalore is 10.3 mn. 91 mn people have been added in the last 10 years. The rate of growth of population in rural areas in last 10 years has been 12.18 % & whereas in Urban areas it has been 31.80% urban areas are critical for India's growth story. We should look at china. which has revived its cities. Today chinese cities attract foreign invt which has brought economic growth, generated resources for the poverty alleviation in rural areas.

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At present urban areas face problems like:
* Unplanned urbanisation., Urban poverty, epidemics, lack of basic amenities, slums, growth in crimes, lack of proper solid waste management system, pollutio

74th Amendment act, has been a half hearted exercise in some way it is more backward than 73rd Amendment Act. There is no institution of direct democracy at par with Gram Sabha. Urban administration is chaotic with multiple agencies & various types of municipalities like Nagar Panchayats, Nagar Palika's, Nagar Nigams, Cantonment Boards, court authorities, special purpose vehicle. India is continuing with the British system where the real power lie with the municipal commissioners rather than Mayors. Municipalities also face problems like lack of clear mandate, ~~lede~~ inadequate institutional structure, lack of expertise, lack of funds, functions & functionaries.

The size of population under municipal administratio is too large to govern. Only recently govt has started to giving attention to ~~used~~ urban deve . For the 1st time Ministry of Urban deve was created in 1985. 1st Nat comm on urbanisation was set up in 1988. Previous govt has adopted an incentive based programme to strengthen devolution & to build urban infrastructure. JNURM present govt has also taken initiative like AMRUT, HRIDAY & the smart city. The idea of smart city is to create a city with modern amenities, IT enabled services, 24X7 supply of power & water.

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However smart city is progressing at a very slow pace. According to Isher Judge Ahluwalia, Govts. plans to achieve smart cities is not possible without the empowerment of municipal governance. Govt. is neglecting the municipalities, & is creating special purpose vehicles to achieve the target.

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Lecture 4
18/03/2017

Q. Women & Panchayat

73rd Amendment Act takes a revolutionary step as it provides reservation for women at all levels including the post of chairperson not less than 1/3rd of seats are reserved for women.
Some state have also reserved 50% of the seats.
Panchayats have been seen as an empowerment measure in favour of women. Initially there were apprehensions that women members will not be able to exercise their choice & will be acting as spokesperson of male member of their family.
Sudha Pai, mentions the concept of Pati Panchayat
According to Rohini Pandey, there was a lack of clarity w.r.t the role of women representative. However, some recent studies show positive impact of women reservation not only for women but also for panchayats, in the study conducted by ministry of Panchayati Raj suggests that reservation for women have brought attitudinal changes towards women families are more interested to send their daughters to school. It was wrong to assume that women will be just spokesperson. Once women have been given opportunity they have exercised their choice. It has brought psychological empowerment. Study of ministry of Panchayati Raj becomes the basis for supporting the cause for reservation for women in legislature.

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The study also show that the performance of Panchayats have been better where women have been the representatives. Fatima Bie Sarpanch of village in Kurnool District in AP has done exemplary task towards the economic empowerment of women. Her contribution is recognised by UNDP. There are many case studies which suggest that women sarpanch have done much better task in dealing with basic issues like water & sanitation. All women panchayats eg. in HR have also taken significant initiative to address the issue of declining sex ratio.

There has been a requirement for the trainning & capacity building of women representatives. Earlier Ministry of Panchayati Raj had started Panchayat Yuva & Mahila Sashakti karan Abhiyan. Such missions and movements should continue as an empowerment measure.

Q. Grassroot Movements:

According to D.L. Sheth Grassroot movements or mass movements have become active in different parts of the country since 70s. they represent, disparate discouraged of economically marginalised & socially excluded sections of society,

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Many micromovement have combined together to form National level alliance to fight against Indian state on the issues of Globalisation, there is an empression that Indian state is increasingly getting alligned with foreign capital. Micro-movements are counterveiling forces against globa political & economic power.

→ Rajni kothari mentions the rise of micro movement is a symbol of dissatisfaction with representational politics & institutional decline. There is a decline of parliament & disconnect b/w people & their representatives, there is a decline of politica parties. Political Parties have long abundant 'movement aspects of politics' & have reduced themselve to the electoral machine. Political Parties operate at the Grassroot levels only at the time of elections. Trade unions in India have been the junion partner & bargaining counters of political parties. Thus micro movements led by educated middle classes have emerged in India.

→ Smitu kothari

According to Smitu kothari Globalisation has revived the grassroot movements around the world. Because of the destructive forces of development. Globalisation have also promoted the growth of the movement for peace, human rights & corruption

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→ Amrita Basu :- suggest the growth of Grassroot movement in India is because of capitalist model of development on one hand & availability of democratic space on the other hand.

→ Ranjitha Mohanty has suggested that Grassroot Movements have served following tasks :

(i) Replaced the exclusionary narrative of state led development with counter narrative of inclusion.
(ii) Expand non-party political spaces for social action.
(iii) Public space is constantly democratised.
(iv) Re-negotiating people's relationship with the state.
(v) sight of the re-construction of the modernity through the discourse of citizenship & rights.

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4. JUDICIARY

Q. Define Judicial Activism what are the causes of Judicial Activism & What have been the consequences of Judicial Activism.

Q Explain the Difference b/w Judicial Activism/ Judicial Review & Judicial overreach.

Q Critically evaluate the role of SC towards fullfillment of its constitutional mandate.

Q Why Pratap bhanu Mehta call a Judiciary a Paradoxical Insti

Q What do you understand by politicisation of Judicial and Judicialisation of politics.

Q Is India a case of Judicial Sovereignty & Judicial Democracy.

Q. Discuss the major areas of reform required in Indian Judicial System.

Introduction :

According to Lord Bryce there is no better test of the excellence of the Govt. than the functioning of its Judicial System.

Above statement clearly show that the efficient Judicial system is an integral component of Good Governance which isa pre-condition for developement

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studies show direct correlation b/w efficiency of Judiciary & economic growth.

What is the role of Judiciary ?

In a Democratic country like India Judiciary is considered as the Institution which ensures that Democracy does not get converted into tyranny of Majority. Hence, Judiciary is given the power of Judicial Review which ensures the rule of law in the country.

Nature of Judiciary under the Indian constitution:

According to Granville Austin once political Revolution was over in 1947. India started with the 2nd revolution ie. social & economic revolution. According to Pratap Bhanu Mehta, constitution of India is itself a revolutionary document. constitution became the basis for transformation of traditional society into a modern society. Indian revolution was supposed to be led by the state. According to Pandit Nehru constitution of India does not envisage a passive Judiciary. It actually looks at Judiciary as a active participant in India's social revolution.

What are the grounds to suggest that Indian constitution does not create passive Judiciary:

(1) Article 36.

In Art. 36 Judiciary also comes within the definition of the state.

Note

Passive- accepting or allowing what happens or what others do, without active response or resistance
નિષ્ક્રિય/ સહનશીલ/ વિરોધ ન કરનાર

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Hence, Judiciary can also take measures for the achievement of the directives given in Part IV of the constitution.

② Article 141

As per Article 141 the law declared by SC shall be binding on all courts within the territory of India.

It means constitution empowers Judiciary to declare the law. Above provision emplies that so long legislature does not make the law, the law declared by SC will be treated as law. Eg. Till parliament has not brought the law on sexual Harassment of women in workplaces, Vishakha guidelines issued by SC were to be treated as law.

Q. Discuss the nature of Judiciary created by the constitution.

According to the constitutional experts, Indian constitution creates the strongest Judiciary in the world. Constitution not only creates strongest Judiciary but also 'fiercely independent judiciary'.

- Powers of Supreme Court.

① Article 129

As per Art. 129, SC is a court of record. As a court of record the orders of SC are to treated as law in all courts. & as a court of record it has power to punish for its contempt.

Note
contempt - disrespect - अवमान / अपमान

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② Article 137 – Review Petition.

Only SC can review its orders. There is no other authority or court over SC. Art

③ Article 142 – Power to do complete justice.

In case of any matter pending before the SC, it can issue any order or decree for the purpose of doing complete justice & it shall be the responsibility of other two branches of Govt. to get its orders implemented.

④ Article 144 –

The law declared by SC is binding on all courts.

⑤ Article 144 -

All authorities civil & Judicial within the territory of India shall act in aid of SC.

- Jurisdiction of Supreme Court

① Federal Court. – Article 131

② Advisory Jurisdiction – Article 143

③ Writ Jurisdiction for enforcement of FR.

④ Appeallate Jurisdiction – SC has been made the highest court of appeal for the sake of uniformity. However, it is expected that appeallate jurisdiction remains restricted & SC should not be over burdened. Hence, appeallate jurisdiction is a discretionary power of SC & requires a certificate by HC except in a situation where HC is given death sentence, life

Note -

Jurisdiction – the official power to make legal decisions and judgements.

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Res judicata ↓ SC can reject to accept case. to stop the over burden of cases.

imprisonment or imprisonment for 10 yrs or above SC has appellate jurisdiction in civil matters, criminal matters, & matters related to the interpretation of the constitution. There is also a provision for special leave petition where SC can grant the permission for petition against the order of any court or tribunal except the courts of armed force

- Independence of supreme court :

① System of Appointment.

It is very difficult to remove a judge of SC & HC. The salary & allowances are the expenditures charge upon the consolidation fund of India.

→ Assessment of SC in India -

There is a difference of opinion among the scholars w.r.t to the role played by SC in India. on one hand scholars like Upendra Bakshi appreciates the role of SC in strengthening Democracy in India. According to Upendra Bakshi, SC is doing chemo Therapy of the carcinogenic Indian politics. According to him, Judiciary has ensured the rule of law & has strengthened the rights of people of India & it is for this reason the SC of India has become 'supreme court of Indians'. Surveys show that the most favourate institution of Indians is Judiciary.

Note

carcinogenic - a substance capable of causing cancer in living tissue.

chemotherapy - a treatment of disease by the use of chemical substance, especially the treatment of cancer by cytotoxic & other drugs.

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Pratap Bhanu Mehta mentions about 'Post Democracy'. Post Democracy means strengthening of the power of non-elected institutions like SC, Election commission & CAG.

The scholars like Pratap Bhanu Mehta take extremely critical view about the SC in his article 'India's Judiciary the promise of uncertainity'. He calls Judiciary as self perpetuating paradoxical & highly politicised institution.

Lavanya Rajmani, is also critical of Judiciary as she suggest that judiciary in India prefers to play the role for which it is ill equipped & neglects the role which is required to play.

Pratap Bhanu Mehta in his book co-authored with Devesh kapur titled 'Public Institutions in India has given following assessment of the role of SC:

- SC has by enlarged plays an significant & even pivotal role in sustaining in India's liberal democratic institutions & upholding the rule of law. SC is one of the world's most powerful judicial bodies yet precisely because of this its career has been and remains overshadowed by irony & controversies.

Its role has been both positive as well as problematic for Indian Democracy. He has analysed the role of SC in upholding the basic liberties SC has

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actually upheld the basic liberties but its record in questionering govts laws related to preventive detention & govts actions in preventive detention have not been satisfactory. SC did protect the Freedom of speech & expression but has given leeway to the govts actions banning books to appease orthodox section of the society.

SC record in areas of substantive justice upholding rights like Right to health, education, shelter need to be appreciated.

PIL has become an important vehicle for expansion of Judicial Powers. A

According to P. B. Mehta, Judiciary is suppose to uphold the rule of law. Judiciary is the Guardian of the constitution. There are many instances where Judiciary has protected the constitution but in the process, Judiciary itself has gone beyond the constitution & acquire the powers which has not been given to it by the constitution. According to him, Constitutionalism does not result from the acts of Judiciary. Constitutionalism actually results when people develops overlapping consensus over democratic culture.

Judiciary in India does not work on any overarching principle. Hence there is an uncertainty in Indian Judicial system. most of judicial decisions

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are 'Artifacts' of individual judges. The unpredictable nature militates against the spirit of constitutionalism. He also talks about the phenomena of politicisation of Judiciary & Judicialisation of politics. Judiciary in India is itself a political institution. The judgements are 'delicate political balancing.' Judges attempt to balance competing political aspirations. Eg. Many of its judgements are not based on legal principles but on political requirements. Judiciary has strengthened its position vis-a-vis other two branches of Govt. Judiciary had played its cards more smartly than the other two branches. In the words of P.B. Mehta 'Judicial power in India creates itself & destroys itself. Judiciary has gained popularity at the cost of other branches of govt. It has used its image to strengthen its powers. At times judiciary has protected erring judges in the name of judicial independence.

P.B. Mehta suggest that India represent the classical case of Judicial governance. Judiciary has not remained indifferent with any major issue of public life. Judiciary is less concerned with performance of its duties rather than stigmatisation of executive Judicial Activism had hardly resulted into any real change in the quality of life.

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There is no self case for self congratulations.

lecture 5
20/03/2017

Prof. Upendra Bakshi, in his article 'Unfair to justices' has defendend the role played by Judiciary. Fai There may be some judgements which may be based on sentimentalism rather than reason, or in some cases Judiciary may have gone wrong but overall Judiciary has contributed to the deepening of Democrac in India & protection of liberal order

To conclude we can say that the record of Judiciary has been comparatively better in comparison to the other two branches of the Govt. some of the landmark judgements of SC include the judgement in Keshvanand Bharti case which has protected the sanctity of the constitution. According to Zia Modi, if judiciar has not given the doctrine of Basic structure democracy, would not have survived & India would have gone to the same path like other Third world countries where Democracy collapse & Dictatorship came into existence. SC in Menaka Gandhi case has given the doctrine of due process of law & since then there has been a much better protection ~~the~~ to the FRs of life & Liberty.

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Judiciary in order to full-fill its constitutional obligation U/A 39 (A). (Equal Justice & free legal aid), Judiciary has instituted the system of PIL ie. Public Interest Litigation.

Q What is Judicial Activism & How judicial Activism differs from Judicial overreach.
Discuss the desirability of Judicial Activism in Indian situation.

→ What is Activism?

The concept of Activism can be understood by applying the concepts of chemistry. Electron moving in its orbits gets extra energy & jumps into orbit of the other. Similarly in case of institutions when they get extra energy & go beyond where constitutionally mandated limits & interfere into the orbit of the other is called as Activism by that branch. Thus Judicial Activism is when judicial goes beyond the constitutional mandate & intervenes in sphere of legislature & executive. Judicial Activism is not unique to India it is a universal phenomena. Similarly Activism is not unique to Judiciary. In India we have seen Activism by executive, legislature, EC, CAG at different times.

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→ What are the conditions which give rise to Judicial Activism?

(i) Written constitution:
(ii) If a constitution contains the scheme of FRs.
(iii) If a country is a part of Global HRs Regime.

→ What are the unique factors in India?

(i) overreach by executive.
(ii) Decline of Parliament.
(iii) Coalition Politics
(iv) Passivity on the part of other two branches of Govt.
(v) Globalisation
(vi) Growth in corruption
(vii) Civil society Activism.
(viii) Emergency & violation of Rights.
(ix) Constitution of India itself provides for Activist Judiciary
(x) Political culture where judges enjoy lot of respect.
(xi) Personal preference of Judges.
(xii) Indian public romanticising Judicial Activism.

→ Idea of Judicial Activism.

Judicial Activism should be differentiated with similar concepts like Judicial Review.

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→ Judicial Review -

It is the ordinary function of Judiciary otherwise it will be called as Passive Judiciary. However, when Judiciary does not limit itself to the task of Judicial Review & also suggest what should be the law & starts taking the responsibility of implementation it can be called as Activism. One of the extreme example of Judicial Activism has been the Doctrine of Basic Structure given in Keshvand Bharti case. In KB case, Judiciary has gone beyond the constitution, Judiciary has invented the concept of Basic structure & has assumed not just the role of legislature but the role of constituent assembly. Similarly the way judiciary has interpreted the term consultation in context of appointment of judges & has declared 99th constitution Amendment as invalid.

There is a difference b/w Judicial Activism & Judicial Overreach. However, the difference is subjective Today Judicial Activism has developed consent in its favour. Those actions of Judiciary for which there is consent are called as Activism whereas those actions where people feel that Judiciary should not have overstepped can be considered as Overreach. It will vary from person to person. Eg. w.r.t the Judiciary's Decision on Inter-state river linking

Activism
↓
good

Overreach
↓
undesirable

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project some sections considered it as desirable & considered it as Judicial Activism which has become normal. on the other hand many considered that Judiciary has overstepped because Judiciary does not have expertise in such matters

At times the word Judicial High Headedness is often used. Judicial High headedness would mean that Judiciary is not using its powers in the right context. Eg. No. of times Judiciary has issued the contempt of court notice against Journalists to protect erring judges.

→ Is Judicial Activism Desirable?

There are two schools of thought:

① Conventional school-

Lord Jowett, Former Justice Bharucha, Former Justice M. Katju.

According to Lord Jowett it is indecent for judges to make laws. According to former Justice Bharucha Judiciary neither have expertise nor resources to micro manage the administrative leviathan.

According to M. Katju, "Judges should tell if there is one, don't make if there is none."

② Contemporary school-

Justice Reed of USA & Former Justice P.N. Bhagwati

legal Activist Kalpana Kannabiran

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According to Justice Reed, interpretation is always a creative function. Judges always make laws when they tell the law. Interpretation is never a photographic function.

According to former Justic P.N. Bhagwati, "Gone are the days when it was considered as indecent for judges to do Activism. If Judiciary doesn't go for Activism it means judges are trying to escape from their responsibility, they are preferring to live in the comfort zones, unaffected by public criticism.

Pedantic ↓ literal interpreta

According to Kalpana Kannabiran the era of pedantic legalism is over & the era of Judicial Activism has started.

Desirability in case of India - matter of Debate.

The critics of Judicial Activism include M. Katju, former PM Manmohan Singh.

Pratap Bhanu Mehta is critical of Judiciary's Actions on No. of occassions but he is not against Judicial Activism in those situations where decisions have strengthened Democracy & protected rights. Professor. Upendra Bakshi is a admirer of Judicial Activism & considered it as chemo therapy.

Though there are some cases where it seems that Judicial Activism was not needed but in most of the situations Judicial Activism in case of India has proved to be a blessing in disguise

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Judicial Activism has acted as 'safety valve'. We can imagine a situation where parliament is in decline. Executive is either not fullfilling its duties or acting in a arbitrary way, If Judiciary has also closed its doors the only option left with the people was revolution. Judicial Activism in India has protected :

(i) Sanctity of the constitution.
(ii) Strengthened Human Rights.
(iii) Tried to adress corroption.
(iv) Filled the gaps when there was policy paralysis.
(v) Tried to bring electoral reforms
(vi) Has strengthened substantive justice in context of Right to education, Right to food.

According to Bhikhu Parekh, India emerges as a case of 'Judicial co-governance' He also suggest that th India is an example of Judicial sovereignty.

P.B. Mehta, suggest that India is an example of post democracy where there is a greater consent for non-elected institutions.

To conclude we can say that Judicial Activism had benefited the country but it does not mean that country should be run by judges. Judicial Activism can be a medicine but it cannot become a daily bread.

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Hence it is necessary that other two branches of Govt should start full filling their responsibilities instead of criticising Judiciary.

→ Judicial Reforms.

According to Lord Bryce there is no better test of the excellence of the Govt than the functioning of its Judicial system. It is said that "if the lamp of justice goes, it will be difficult to imagine the amount of darkness." To quote from Bible, "you are the salt of the earth if ~~earth~~ salt looses its savour/taste from where the earth will be salted."

Why Reforms →

Studies show the direct relationship b/w Judicial Reforms & Economic Growth. Judiciary is the most important institution of Grievance redressal.

If Judicial system is not effective & efficient the only option is left is revolution.

What reforms are needed in Indian Judicial system?

(i) Speedy delivery of justice - It is said that Justice delayed is Justice Denied. Indian Judicial system is notorious for excessive & unnecessary delays. It is said that if a person filed a suit in Indian court. It is not necessary that his Grandson will get the order. The classical example is 'Arya Samaj case'.

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(ii) Tackling corruption

corruption of any branch of Govt. is unacceptable, corruption of Judiciary is unthinkable. It is unfortunate that corruption in Indian Judicial system has increased many times it is not just limited to subordinate judiciary but it is not reaching to higher Judiciary. Eg. In Ghaziabad Provident Fund scam many judges of HC & even SC have been accused.

(iii) Institutional Reforms

There is a need to reform the system of appointment and removal of judges. There is a need to increase the no. of courts. There is need to strengthen the capacity building programme of Judges.

→ Whose responsibility of Judicial Reforms?

(i) union Govt.
(ii) Judiciary.
(iii) Bar Associations
(iv) Civil society.

(i) Responsibility of union Govt.

The biggest responsibility is of union Govt. to create infrastructure, provisions for capacity building of judges review outdated laws, reform criminal justice system, police reforms, reform code of civil procedure & criminal procedure, effective judicial impact assessment, recruitment of judges. judges to population ratio in India is lowest. It is around 10.5 judges per million population.

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Many posts remain vacant in HC & SC. Because of lack of consensus b/w Judiciary & Executive. Govt. has to increase physical infra structure as well as manpower. Govt. in India has been an Active litigant. It is good that Govt. has brought new ~~&~~ litigation policy which restrict govt. being active litigant. Govt. need to take steps to create Gram Nyayalaya's. Though Gram Nyayalaya Act has been in existence since 2005 yet only handful of Gram Nyayalaya's have been created. Govt. should actively promote alternative dispute redressal system. Govt. should also promote legal literacy & strengthen legal aid. There is need to introduce plea bargaining as suggested by Malimat committee. There are many areas where Govt. & Judiciary need to work together Eg. reducing no. of vacations for judges, system of appointment & accountability.

→ Role of Judiciary -

Judiciary should also take steps to reduce the no. of cases which are pending. Judiciary can restrict itself from accepting large no. of appeals & specially under special leave petitions. At times Judiciary has been accused of doing activism at the cost of its normal business. Higher Judiciary should take steps to check the cases of corruption. On one hand Judiciary takes initiative to bring transparency & accountability in the functioning of Govt. but on the other hand Judiciary is reluctant w.r.t its own accountability.

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SC is reluctant to bring the office of Chief Justice of India within the scope of Right to Information Judiciary has also not been supportive of Govts. Proposal like 'Judicial Standards & Accountability Bill' in the name of Judicial Independence. Judiciary has to enfore discipline among the judges & take corrective steps.

Role of Bar Associations -

one major reason for excessive delays is the malpractices by the lawyers There is a need that Judiciary & Bar Association together formulate model code of conduct for lawyers. There is a responsibility of civil society to promote legal awareness, strengthen alternate dispute redressal system ie. lok adalats. Civil society should provide legal aid.

other suggestions include the introduction of more no of Fastrack courts, E Governance & capacity building of judges.

Reform in System of Appointment of Judges in Higher Judiciary -

constituent assembly debates -

constituent assembly considered 3 options.

(i) Appointment by executive, which is most common practice around the world.

(ii) Appointment by executive & ratification by legislature as found in USA . It was rejected because of the possibility of politicisation.

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(iii) Judges appointing judges for the sake of Judicial Independence.

Ambedkar rejected the proposal as he suggested that there cannot be Imperium in Imperio which means state within state. There has to be a checks & Balances.

Which system was accepted?

Appointment by executive. But executive was not given free hand to check politicisation & for the sake of Professionalism. Hence, appointment only after the consultation with the members of Higher Judiciary. Thus constitution maintain a fragile balance though it seems tilted towards Judiciary. Balance would depend primarily on the intentions of the executive.

System in Practice?

In Practice the system where Judges appoints judges have come into existence & the role of executive has been reduced to the rubber stamp.

Evolution of collegium system-

(i) Immidiately after Keshvanand Bharti Judgement, Justice A. N. Ray was appointed as CJI supercee-ding 3 senior most judges.

(ii) In 1977 Justice Baig was appointed as CJI superceeding Justice Khanna.

(iii) Above two actions of the executive were seen as an attempt of an executive overreach. Though there was no prohibition on executive & even two commissions had suggested that seniority alone should not be the basis for appointment of CJI rather merit should be the main criteria.

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However the manner & the timing in which executive gave the merit as a basis was wrong.

→ Cases related to the appointment of Judges -

(i) Sankalchand case, 1977
In this case SC was to interpret the meaning of the term consultation used in Article 217 dealing with transfer of Judges of HC.
In this case SC held that consultation does not mean concurrence.

(ii) S.P. Gupta case, 1981
It is known as 1st judges case. SC again held that consultation is not concurrence.

(iii) SC advocates on records Vs UOI case, 1993 this is known as 2nd Judges case. SC overruled its view & held that consultation means concurrence.
It gave primacy to the opinion of CJI. CJI was to give opinion after consultation with 2 senior most judges.

(iv) 3rd Judges case - Presidential Reference to the SC, 1998 U/A. 143 neither SC is bound to give nor Govt. is bound to accept but SC took the undertaking as a pre-condition to give opinion. Whatever will be the opinion it will be binding on the executive.
Features of Judgement:
(a) consultation mean concurrence.
(b) CJI could consult 4 senior most judges.
(c) For appointment concurrence of atleast 3 judges is needed which must include CJI. to create the balance it was mentioned that if 3 judges disagree & CJI & one judge agree then also name will not be recommended.

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(d) In case executive returns the name for reconsideration it will give the reasons. Reasons will be considered by the collegium. If collegium sends the name again executive has to appoint.

→ Problems existing in collegium system-

(1) Inefficiency-
SC is already overburdened & hence it was difficult to allocate time as a result many posts in many HC remained vacant. which has increased the delays in delivery of Justice.

(2) lack of Transparency-
There have been allegations that merit has not been the criteria rather caste, religion, family, ties have been prevailing (Uncle Judge syndrome).
No. of times bar association have objected against appointment of persons.
Whether allegations are correct or not but still it was necessary that system should be transparent.
It is said that 'ceaser's wife should be above suspicion.'

National Commission for Review of working of constn headed by M. Venkat Chellaiya had recommended the creation of NJAC. However, it has issued guidelines that it should not be done in a manner that it compromises the basic structure of the constitution

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Global Trend-
In most of the countries there is a shift towards an independent appointment system. Eg. Australia, canada, SA, UK.
Govt of India has also brought 99th amendment Act which has been struck down by Judiciary.

Lecture 6
21/03/2017

- 99th Amendment Act.

→ Purpose of NJAC-
(i) Appointment of CJI
(ii) Appointment of other judges of SC
(iii) Appointment of Justices of HC
(iv) Transfer of Justices of HC

→ Functions.
NJAC will prepare memorandum of procedure which will determine the parameters for the appointment wrt. merit & integrity.

→ Composition
(i) CJI as a chairperson.
(ii) Two seniormost judges of SC
(iii) Law Minister
(iv) Two eminent persons

→ Process of selection of eminent persons-
- selected by 3 member committee comprising of PM, leader of opposition & CJI

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Decision making procedure-
Name shall not be recommended if any two members object.

Analysis-
The opinion of law minister & any eminent person can put veto over the opinion given by CJI & senior most judges. If we compare with the Appointment commission in Britain no member of executive is present in the commission. In Britain the appointment is by public notification. So that the persons of merit & integrity can apply for various positions in different courts & tribunals. However in case of India old system was to continue. NJAC to consider the name proposed by chief Justices of HC. The only difference was earlier Chief Justice was to consider Governor but now Chief Justice of HC will also be consulting the CM. SC has
- SC has declared the act null & void in December, 2015 SC accepted that there were flaws in the collegium system, directed the govt. to prepare memorandum Of procedure in consultation with CJI who will consult the other 4 seniormost members to determine the criteria for selection. It has also directed that Govt. to create a secretariat and to make data-bank available. to create a system for grievance redressal. The names recommended, minutes of discussion, views of the person/ Judge having dissenting views, all should be placed on the official website of ministry of law & SC of India. If any person wants to complaint again person whose name is recomended, he can register the complaint.

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Union Parliament -

Q. Discuss the appropriateness of parliamentary Democracy should we shift towards Presidential System or Direct Democracy.

Q. What do you understand by decline of parliament. What are the causes of decline of parliament & the consequences.

Constituent Assembly has considered all the 3 options for the form of Govt to be adopted in India. Gandhian's were proposing Partyless democracy. Gandhi was critic of political parties because they persue unethical politics. They persue party interest in the name of National Interest. Parties results into concentration of power.

However, Modernists like Nehru & Ambedkar, rejected the idea of Direct Democracy. They also rejected for Proposal for Presidential system & prefered representative democracy & parliamentary form of Governance for following reasons:

(i) Experience with the working of parliamentary system.

(ii) Parliamentary system is more accountable. Govt is accountable to legislature on day to day basic.

(iii) Parliamentary system is more democratic because Parliamentary system results into cabinet form of Govt or collegiate executive or plural executive

(iv) Parliamentary form of Govt better considering India's diversity because different groups can be represented.

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Western scholars were apprehensive about the possibility of success of Parliamentary Democracy in India from the very beginning.

Why they were apprehensive?

The type of social & economic conditions required for the success were absent. One of the earliest work on Indian Parliament & Parliamentary Democracy is of Morris Jones. Morris Jones in his book 'Parliament in India' give following reasons for his apprehensions against working of parliamentary Democracy:

(i) Western in origin
(ii) Lack of enough experience.
(iii) Scale of diversity
(iv) Social cleavages which automatically result into adverserial democracy rather than consensual democracy.
(v) In traditional society like India power becomes very important for survival so there will be an extreme competition in politics.

Morris Jones has highlighted the following weaknesses of the parliamentary Democracy during the time of Pandit Nehru.

(i) Lack of opposition in the country.
(ii) Lack of independent thinking among back benchers.
(iii) close relationship b/w Govt. & Party.
(iv) Concealed Dictatorship of Nehru.
(v) Social environment in the country.

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(3) From 1990s - Greatest amount of decline-
In the words of Vice President Hamid Ansari, Parliament has become 'federation of anarchy' Debates are rare, informed debates are rarer Ruling party & opposition meet as two warring groups.
Pratap Bhanu Mehta & Devesh Kapur in their book Public Institutions in India mentions that criminalisation of politics has made Indian parliament a self serving institution. Shankar & Rodrigues in their book on Indian parliament gave following reasons for the decline of parliament:

(i) Plebianisation of Indian Democracy.
(ii) Coalition Politics
(iii) Lack of responsible opposition.
(iv) Lack of electoral reform.
(v) Presence of Criminals in Parliament.
(vi) Politicisation of the post of speaker.
(vi) Problem of defections.
(vii) Increasing amount of corruption.
(viii) Globalisation has taken away the scope for policy making.
(ix) Lack of trainning & capacity building among parliamentarians leads to poor functioning of the committee system.
(x) Disruption in Parliament.
(xi) Increase in no. of ordinances.

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We can discuss the evolution of Parliamentary democracy in following phases -

(1) Uptill 1960s - Nehruvian phase -
Reasons given by Morris Jones -

(2) From 1960s till 1990s - Beginning of the decline & disillusionment with parliamentary Democracy.
Reasons - (i) Death of pandit Nehru, Breakdown of Congress system.
(ii) Beginning of defections.
(iii) Indira Gandhi started concentrating powers in her hand
(iv) Decline of cabinet system.
(v) Rise of regional parties.
(vi) Growth of corruption.
(vii) By this time idealism of National movement was over
(viii) failures of Govt. on economic front.

There was a rise of social movement in 1970s Anti-Price rise agitation, Chipko Movement, Jayprakash Narayan called for Total Revolution. Govt. has imposed emergency even on internal grounds. It appeared as if the experiement of Democracy is over. Emergency was the trial period for the parliamentary Democracy. Fortunately Democracy survived. However, extremely adverserial politics started. There was a growth of regionalism in the country. Breakdown of law & order situation in North East, Punjab, J & K.

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World Bank has given 6 parameters to evaluate the working of legislature:

(i) Financial

Parliament is a supreme institute of accountability of the Govt. Hence, parliaments financial accountability or cost to the country has to be evaluated.

(ii) Compliance

Parliament is a supreme institution of law making in the country. There is need to assess how much parliamentarians comply with the rules of procedure which they make themselves for the conduct of Parliament.

(iii) Efficiency:

We have to evaluate the efficiency of parliament in terms of quality of work, time invested & cost involved.

(iv) Effectiveness.

How much presence of the institution felt in the country

(v) Relevance

How much qualitative improvement the institution is bringing in the life of the people.

(vi) Sustainability.

Is institution is in rise or decline?

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On the basis of above parameters, the report of functioning of parliament & legislature is not very satisfactory. However, it does not mean that parliament in India has not done any great job. Parliament has brought many landmark legislations like: Right to Education, Food, Employment, RTI. It is to be noted that despite all unfavourable situations Parliamentary democracy has survived in the country. Massive participation of people in the election show that there is a trust of people in the institution of Democracy in the country. Indian Democracy is maturing However to make India to realise to its potential it is necessary that institutional reforms implemented most urgent of all reforms ie. known as mother of all reform ie. electoral reforms with urgency to adress the decline of Parliamentary Democracy.

Though there have been suggestions for Presidential form of Govt. because of political instability. However, it is neither possible nor desirable. What matters is not the institutions but the persons working in the ~~institution~~ institution — Presidential system may not be a good option because with the ~~the~~ exception of USA in no other country it could maintain its Democratic character. However there is need to give serious thinking towards Direct Democracy.

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According to scholars like Prof. Dibankar Gupta, & Neeraja Jayal. we should be seriously thinking about the movement towards Direct Democracy. The question is not whether we should have Direct democracy or not but how & when.

→ Short Note - Role of Opposition.

Opposition is an integral component of the Parliamentary form of Govt. In parliamentary system opposition enjoys certain rights & Priviledges like Right to ask questions, bring motions. opposition acts as a check & balance. Recognising the importance of opposition, opposition is Britain called as His majesty opposition. In India also there is a statutory recognition to the leader of opposition in both the houses. He enjoys the status of the minister of cabinet rank Leader of opposition is included in the screening committees in the appointment of important posts like Lokpal, NHRC chair person. Role of opposition has not been satisfactory. Initially opposition lacked strength. In the congress system opposition was acting outside the margins. With the breakdown of congress system the strength of opposition started increasing in numbers.

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However, opposition could not play effective role. Because of lack of solidarity. Since the beginning of the minority govt. & coalition politics, there is a considerable growth in the power of opposition. However, opposition has not played a satisfactory role. Opposition is a major factor for the decline of parliament & the ordinance raj in India. Opposition does not follow parliamentary ethics. The parliamentary ethics is 'opposition should have its say but govt. should have its way.' opposition in India has often sabotaged the functioning of the govt. Because of extremely adversarial politics opposition even does not support the right policies of the govt. Since, political parties do not differ w.r.t. policies, they prefer not to debate rather walk out of the parliament. Opposition does not take interest in the standing committee of parliament. Opposition has preferred the role of investigating agencies. Instead of Parliamentary Committees they prefer joint Parliamentary committee's & Indian innovation to investigate scams.

→ Reforms:

(*) Electoral Reforms -

(i) check the entry of criminals & influence of money power

(ii) Reform the institution of speaker & adopt the British system of once a speaker is always a speaker.

(iii) Reform Anti-defection law & make a balance b/w interest of political party & privilege of freedom of speech & expression for parliamentarians.

(iv) codifica^{n} of privileges of parliamentarians to define limits & to check judicial interven^{n} in parliament

(v) Training & capacity Building of parliamentarians.

(vi) Ensure the min. working hours.

(vii) make committee system functional

(viii) Media should also potray positive role done by parliament.

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Union Executive -

Q. Critically examine the position of President. To what extent it is appropriate to say that Indian President is a rubber stamp.

Q. What is Presidential Activism. Give examples of Presidential Activism & Desirability of Presidential Activism.

Q. What is a co-habitation. How does co-habitation impact the smooth functioning of Parliamentary form of Govt.

Q. Examine the ~~relief~~ impact of coalition politics in the institution of PM.

→ Role of President according to constitution of India -

According to Art. 54 President is the Head of Union Executive. All executive actions of the union are taken in the name of President. President shall take actions in accordance to the constitution.

President According to the Theory of Parliamentary form of Govt:

In a parliamentary form of Govt. there are two head

(i) The Nominal Head / Titular Head

(ii) Real Head.

→ Why two heads?

(i) There is a uncertainty w.r.t. the tenure of the Govt. Hence for the continuity of the Administration President is required.

(ii) Since Parliamentary system is based on party politics it is necessary for symbolic purposes to have a head who can be treated as neutral like Queen in Britain.

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Lecture 7
22/03/2017

Nature of the Institution in India -

Nature of the Institution in India differs from the nature of the institution of British Monarch for following reasons:

(i) Britain is Monarchy & India is Republic -

(ii) Britain is Unitary Form of Govt. & India is Federation.

Hence, in case of India because institution is elected we cannot say that it will be completely neutral as in case of Britain. Similarly, President is also the representative of states at union level. Indian institution deviates from British institution in following ways:

(i) Elected

(ii) In Britain king enjoys absolute autonomy however in case of India President can be impeached for the violation of the constitution U/A 61.

Inconsistencies in the original constitution w.r.t. the position of President:

(i) Article 74 -
Before 42nd Amendment act, it was not mandatory for the President to act on the advice of COM. Whereas in Parliamentary system he should be a nominal head or rubber stamp.

(ii) In original constitution even for constitution amendment bill, it was not binding for the President to give assent to Constitution Amendment Bills.

(iii) There is a inconsistency in Art. 61 & Art. 361. Art. 361 suggest that President or Governor shall not be answerable to the court of law for any act performed as their official duty

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However Art. 61 makes President Accountable to the legislature for the violation of the constitution.

(iv) Art 60 deals with the oath of president. President takes the oath to protect & defend the constitution.

(v) In case of India, President has been given power to send messages to both houses of Parliament which is a feature of Presidential form of Govt. In Parliamentary system President should communicate with the parliament through the PM.

→ What was the consequences?

Dispute emerged b/w the 1st President & the 1st PM. over Hindu Code Bill. President Dr. Rajendra Prasad was not in favour of Hindu Code Bill he asserted that Indian Constitution does not create a rubber stamp President as in case of Britain. He asserted that President has discretionary powers & President has the responsibility to defend the constitution as he can be impeached. Ultimately controversy was resolved with the intervention of 1st Attorney General M.C. Setalvad who held that in India President do not have any real power because we have adopted parliamentary form of Govt.

Later on SC in its judgement in Samsher singh case & in Ram Jawaya case held that President & Governors are mere constitutional heads.

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24th Amendment Act, 1971 has made it mandatory for the president to give assent to the amendment bill.

42nd Amendment Act further settled the controversy by Amending Article 74 which made it mandatory for the President to act as per the advice of COM. thus, clearly establishing that in a parliamentary form of Govt. is a figure head & he is supposed to be a rubber stamp.

According to constitutional experts 42nd Amendment act has done the right amendment w.r.t the office of President. According to James Manor, Constituent Assembly lacked the understanding w.r.t the nature of the institution they are creating & they have left on time to settle the controversy & expected that healthy conventions would develope. 42nd Amendment Act had put conventions in Black & White.

42nd Amendment Act, also brings clarity as to what does it mean when constitution mentions impeachment of President for violation of constitution. In case of President violation of constitution means when President does not act according to the advice given by COM headed by PM. It is to be noted that as per SC parliamentary form of Govt is the basic structure of the constitution.

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→ 44th Amendment Act,

It again unsettled the issue. It gave partial discretion to the president. Now president can send the advice back but only once.

According to the constitutional experts, 44th Act, was desirable wrt. the institution of President. It was politically motivated because non-congress parties were always in favour of stronger president. Situation may arise where President belongs to different party & PM belongs to diff. party. then institution of President can be used to check PM.

→ What is the actual position of President?

The Actual Position of President is best described by former President R. Venkatraman. R. Venkatraman was the President when coalition era started. Hung parliament & coalition govts gives discretionary powers to the President. President R. Venkatraman has established healthy conventions to minimise the scope of discretion. He used to call himself as 'copybook President'. He held that President in India is like an emergency lamp which comes to power only when the main switches is off.

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Q. What is co-habitation? Give illustrations & the consequences?

Co-habitation is a term used in French political system. In French there is a semi-presidential form of Govt. Co-habitation is a situation where President belongs to different party & PM belongs to different party. In such situation the relationship b/w President & PM is not as smooth as it should be. In case of India also there have been occassions of co-habitation. Co-habitation has created the situation of Presidential Activism. According to James Manor, many Presidents in India have been Activist Presidents. If we take the example of Dr. Rajendra Prasad despite belonging to same party he was activist president. Gyani Zail Singh was also criticised when he used pocket veto over the bill proposed by Rajiv Gandhi Govt. w.r.t. amendment in post office.

President K.R. Narayanan was one of the most activist President. Eg.

(i) He was the 1st one to reject ~~the imposition~~ recommendation for imposition of Art. 356 in context of state of UP.

(ii) Against the ~~tradition~~ of President reading the speech provided by the ministry on the eve of Republic Day he preferred to give interview on Doordarshan.

(iii) He insisted to read his own speech rather than provided by MEA on the occassion of the visit of US President Bill Clinton.

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A.P.J. Abdul Kalam was not just an activist president he was populist president. It is not expected for the President to have such a high level of engagement with the public. It may result into the developement of alternative centre of power.

- Constitution of India has created a very delicate balance b/w President & PM. PM is the real centre of power & President's position is the position of dignity. According to Bage Hot there are two executives in British system:

(i) Real Executive
(ii) Dignified Executive

According to wage Hot, the role of queen in British syster is to act as Friend, philosopher & Guide of the Gout. Article 78 of the Indian Constitution established the fine balance. It mentions the duties PM towards the PM.

PRIME MINISTER

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- Role of Prime Minister in coalition Government -
- Evolution of Institution of PM in India -

→ Nature of the Institution:

In a cabinet form of Govt. PM is considered as the captain of the ship of the state. He is considered as keystone of the cabinet Architecture. He is appointed by the President but other ministers are appointed on his recommendation. other Ministers are on the pleasure of President which means pleasure of PM.

In practice we find two models of the relationship b/w PM & COM.

(i) Primus inter pares - (1st among equals)

In case of India when Pandit Nehru was PM & Sardar Patel was Home minister the situation of Pandit Nehru was of 1st among equals.

(ii) Inter stellas Luna Minores - (moon among stars)

After the death of Sardar Patel the position of Pandit Nehru was like moon among stars because there was no other minister who had the charisma at par with Nehru.

The concentration of power in the office of PM kept on increasing even after Pandit Nehru. As position of PM kept on becoming stronger the position of COM kept on becoming weak. It was during L.B. Shastri, the power started to shifting to PMO from cabinet secretariat.

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With Indira Gandhi the Institution of PM started developing the features of the Presidential form of Govt. She has undermined the COM & had greater reliance on personal advisers. It was one of the factor for weakening of the Congress party. Trend continued under Rajiv Gandhi. Congress Party suffered largest no. of defections. Since 1989, we see the beginning of coalition Govt at the union level as a regular feature. Coalition govt is a fragmented Govt. Coalition is a bargain. Coalition govt weakens the position of PM. In coalition Govt even the smallest fraction can punch beyond ~~way~~ weight. According to M.P. Singh, in the coalition politics there is no one PM but many PMs.

The position of the former PM becomes weak he is reduced to the manager of the coalition.

Institution is shaped by no. of factors like personality factor, Political environment & culture. Though coalition govt weakens the position of PM but it is not necessary. Lot depends on the personality & the political skills. We can give the example of Vajpayee who managed large no. of parties & has provided the 1st example where coalition Govt completed full term. Even PM Manmohan Singh could provide great leadership and could run the Govt. for complete term in UPA-1.

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It is because of this reason that his govt got the mandate to run the country again. Unfortunately he could not provide the same leadership in the 2nd Term. Number of time he has expressed the problems because of lack of 'coalition Dharma'.

Above analysis show that the position of PM will not be as powerful as in case where his party enjoys majority in the house. But it is not necessary that it will necessarily result into the weakening of the institution.

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SOCIAL MOVEMENTS

Syllabus:

1. Civil Liberties & Human Rights Movements
2. Women's Movements.
3. Environmentalists Movements.

Q What are Civil Rights?

Rights which are considered necessary for civilised existence are called as civil Rights.
Eg. Right to life, liberty, property, Equality before law, Right against arbitrary arrest.

Civil rights are based on philosophy of liberalism. Basic purpose of the Civil Rights is to check arbitrary exercise of power by executive & to maintain rule of law.

Indian Freedom Movement was not just a freedom movement or a national Movement it was one of the largest civil Rights Movement.
Early nationalists demanded basic freedoms like Freedom of Press, better representation in assemblies. Agitation against Rowlatt bill was also an example of civil rights movement. Pandit Nehru was one of the prominent civil rights activist. on 7th November, 1936 Indian civil Liberties union was established on the initiative of Pandit Nehru.

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Ravindranath Tagore was made president & Sarojini Naidu was made working president. Pandit Nehru promised that there will be no 'Black' law in independent India.

Constitution of India is a revolutionary document. It is perhaps the 1st constitution which incorporates the spirit of Human Rights. In India Fundamental Rights are also available to Non citizens. Indian constitution also has a scheme of social & economic rights. It was unfortunate that the provision related to preventive detention laws has been incorporated in the constitution & that too in the Part III of the constitution.

Article 22 provides certain protections to the person detained under Preventive Detention. However, these protections are just for the name sake. In other countries Preventive detention laws are applied only during emergencies like war but in India Preventive Detention laws can be implemented even during normal times. The trend has been the misuse of preventive detention laws against political opponents to curb political dissent. India even continued with the colonial laws like section 124 (A) dealing with sedition. section 124 (A) outlaws any speech, written or verbal, signed or visible representation or otherwise which aims to bring hatred, contempt or excite or even attempt to excite, disaffection towards Govt. established by law in India.

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In above case the penalty is that it is not bailable, non-compoundable cognisible offence which may result into imprisonment for 3 yrs. or life imprisonment with or without fine.

The Govt. of Pandit Nehru became 1st Govt to use Preventive Detention law which was used against communist leaders like A.K. Gopalan.

There has been the decline of rule of law & the rise of police state or over developed state in India after independence. There was a growth of executive high headedness corruption. Towards 1970, we see the beginning of the new phase of Civil Rights activism in the country. By this time the nostalgia of Freedom movement was over. Economic failures of Govt. were on surface. There was growth of Anti-price rise agitations. Jayprakash Narayan called for total revolution. He even appealed to armed forces not to obey the order. Govt. imposed emergency even on the ground of internal ~~en~~disturbance. Govt. called for committed Bureaucracy & committed judiciary. Emergency was the darkest hour for India's Democracy It was a trial period for democracy. fortunately democracy survived. Not only democracy survived it has strengthen democratic consciousness in country. There was proliferation of Civil Rights organisation like citizens for Democracy, Associations for Democratic Reform & People's union for Civil Liberties lead by lawyers like Shanti Bhushan who preferred the path of Judiciary to ensure the rule of law

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After Emergency, Judiciary also became an active participant in India's Civil Rights & Human Rights Movement

Lecture 8
23/03/2017

- Human Rights Movement in the Country -

From 1980s around the world there has been growth of the consciousness of Human Rights. In case of India also a new phase of Activism started. Civil Society working with Judiciary has led to the beginning of new phase of Human Rights Activism. Activist judges like P.N. Bhagwati institutionalise PIL. PIL proved a revolutionary step in providing access to justice to the marginalised section.

SC which has been earlier reluctant w.r.t. Directive Principles became the champion of social & economic rights. It has given wide & substantive interpretation to right to life to include rights like Right to Education, Health, clean Environment & Right to life not just animal existence but to live with dignity.

Globalisation has increased the no. of advocacy groups in India. Govt. of India have also established institutional mechanisms like National Human Rights Commission, RTI.

UN Human Rights Council conducts 'Universal Periodic Review' of member countries. Uptill now there have been two UPR's of India. 2008 & 2012*. Govt. of India has not been able to meet the targets it has taken

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up after the 1st review. some of the prominent HR concerns in India are:

(i) Large no. of under trials
(ii) Poor situation in prisons
(iii) HRs violation by members of armed forces in insurgency affected areas AFSPA (Armed Forces Special Power Act)
(iv) Extremely slow judicial system
(v) Presence of colonial laws like Sec. 124 (A) IPC
(vi) Misuse of Preventive Detention laws against political opponents.
(vii) caste & religion based violence & exclusion.
(viii) Negative sex Ratio
(ix) Hunger

Above analysis show that HR Activism has not resulted into any qualitative improvement. India's commitment towards protection of Human Rights is more of a rhetoric than reality.

What are the weaknesses in Human Rights Movement.

According to Prof. Upendra Bakshi.

"There is no Human Rights Movement in India, what we find is not Human Rights Movement but Human Rights Industry."

Advocacy groups employ management graduates rather than social activists These Organisations act with corporate approach rather than the attitude of social service.

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NGO
↓
not under RTI

legitimacy
↓
વૈધાનિકતા

dilemma
↓
મૂંઝવણ

they lacked legitimacy in the country because their approach has been biased. they have raised issues like HR violation by members of Armed Forces but hardly talk about HR violation by militant organisation of killing of innocent civilians, Armed Forces and paramilitary forces.

According to Human Right Activist Nandita Haksar, HR movement in India has to work within the defined limits. Indian state does not tolerate any activism going beyond the periphery of Nationalist discourse, Whenever Govt. adopts zero tolerance towards terrorism. It ends in zero tolerance towards HR.

It is to be noted that so long India will continue to suffer threats to territorial intigrity there will always be a justification with the Govt. for laws like AFSPA. However to enhance the credibility of India it is necessary that Govt. brings reform in NHRC, Give greater powers to NHRC w.r.t. enquiry on the HR violation even by the members of armed forces. Govt. has to ensure discipline among law enforcement agencies. There is also an urgent need for police reforms, judicial reforms, reforms of judicial criminal justice system.

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Environmental Movement:-

Environmental Movements revolve around the issu of Developement & Democracy. Environmental Movements in India or around the world have challenged the model of developement. In case of India Environmental Movements are the movements by the weakest section of the society. The major participants are tribals & people whose life is dependent on nature. India has a long History of enviromental movements. The tribal revolts against the British colonialism were earliest Environmental Movements.

One of the noted Environmentalists in India Ramchandra Guha has made comparison b/w Environmentalism & in North & South. Environmentalism in North western countries is lead by scientists whereas environmentalism in South is lead by the poors & ignorants. Environmentalism of North is full stomach. whereas Environmentalism in south is empty stomach. We have to salute the fighting spirit of tribals in Orissa who dare to challenge global giants like vedanta & Posco. Indian Environmental Movement challenge the developement strategy of Indian state. Ram Chandra Guha has analysed Indian environmental movement in 3 phases.

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Phase I - 1970s

In his book 'The Unquiet Woods' he traces the origin of Modern environmental movement to chipko movement in 1970s in central Himalaya _____ where women played the prominent role. Environmental movement have added a new dimension to India's democracy. It also opposes ideological challenge to the dominiant motions of meaning, contents & patterns of developement in India. In 70s Environmental Movement was seen as Interloper. At that time India was aspiring to catch with the western countries. Conservation of nature was considered as the luxury of rich nations. Guha also calls 70s as an age of Environmental innocence. During 70s Environmentalists like Sundarlal Bahuguna, Chandiprasad Bhatt were seen as CIA agents.

Phase II - 1980s

80s is marked by the growth of Environmental consciousness. Environmental issues started getting media attention. Prominent Environmental journalists like Anil Agarwal, Nagesh Hegde & Shekhar Pathak could bring the attention of the Govt. In 1980 the Govt. of India has set up 'Dept. of Environment' which was later on upgraded into full fledged ministry.

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Phase III

In 1990s there was growth of professionalism in Environmental Movement. The positive aspect was Professional scientists & social scientists started taking Environment as an area of research. Indian Institute for Science in Bangalore started centre for ecological science. On the other hand there has been the growth of NGOs including foreign NGOs Environmentalism got more complicated. Environmental degradation has increased many times with the introduction of New Economic Policy. Reforms have been neither pro poor nor pro environment & it is the major reason for rise of left wing extremism. Environmentalists where earlier attacked as CIA agents but now dismissed as 'Old socialist Guys'.

It is unfortunate that ministry of Environment made project clearances of formality resulting into high level of air pollution & depleted Ground water.

According to Ramchandra Guha, 'Polluted skies, dead rivers, disappearing forests, displaced peasants & tribals is what we see around us.

40 years after Chipko Movement. India today is a Basket case of Environmental tragedies. In his book the Fissured Land' & Ecological History of India' co-authored with Madhav Gadgil.

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Ramchandra Guha advocates empowerment of people, proper valuation of Natural Resources & knowledge dissemination. In their another book, 'Ecology & Equity' they have highlighted the use & abuse of nature & in contemporary India & have offered the critic of developemental model followed since independence.

Ramchandra Guha has identified 3 strands in Indian environmental movement.

(i) Crusading Gandhians.
They challenged the developemental model & suggest alternative approach based on Indian tradition.

(ii) Appropriate Technology -
It represent those sections which focus on technological solution to ecological issues.

(iii) Ecological Marxists -
They are working at the grassroot level & support radical democracy.

We can say that it is unfortunate that today it is believed that technology is a solution to human problems but technology cannot be a substitute to the political view & social action. What is required is not change in technology but change in value systems.

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Sunita Narayan of centre of Science & Environment have also analysed Indian environmental movement she categorises Indian Movement as 'Utilitarian conservatism' & Western Movement as 'Protectionist Conservatism.' she gives the concept of 'New Environmentalism'. It is wrong to think 'Environmentalism is Anti-developement'. New Environmentalism requires that we look at developement & people differently. According to her, Environment is not about Protecting Tigers or planting Trees it is about Democracy. We have to have the model of developement which make people as custodians of the Natural resources New Environmentalism calls for ideas without dogmas & idealism which is practical. she has highlighted the following weaknesses of Environment movement the biggest weakness is 'Fire-fighting Approach'. They have not been able to strategise themselve. Environmental activists may have been success-ful in closing few plants or industrial units but they have not been successful in changing the developement policy in India Till environment does not become the issue of electoral democracy, its impact is going to be limited. She also mentions the challenges faced by the environmental movement in India.

(i) lack of resources
(ii) lack of expertise
(iii) Bureaucratic Apathy
(iv) Corruption
(v) Crony capitalism (mining barons are MLAs & MPs)
(vi) Global Environmental rules are now been shaped by countries of north rather than south.

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According to Sunita Narayan, Environment is not just about ecology it is about social ecology.

Vandana Shiva and Jayant Bandopadhyaya in their Article 'political economy of ecology movements' suggest that developement activity in India proceeded on a resource intensive path it has seriously disrupted ecological stability & life support system. which have been maintained through centuries. It is in this context that environmental movements have emerged in India.

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Women Movements in India -

Women Movements in India was started by libera men like Rajarammohan Roy & Ishwarchand Vidyasag British Govt. has also brought legislations like widow remarriage act, prevention of Sati act & Sharada Act. these was a growth of women organisation in different parts of the country. Gandhian Movements were not directly aimed at women concerns yet the brought consciousness among women & ended the stigma with the participation of women in public sphere. The most prominent organisation during freedom movement was All India Women conference set up in 1927. The achievements of the organisation are Sharada Act, 1929 & Lady Harding college in Delhi

→ After Independence -

We can divide women movement into three phases.

① Uphill 1970s - Phase I

Aparna Mahato calls these years as 'Grey years' of women movement.

Why Grey years?

There was greater activism in women movemen before independence. The activism was stopped after independence. It was thought that there is no need for movements against indigenous govt. Govt will automatically take care of the women concerns. Constitution of India is a revolutionary

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document in many sense. It has given equality of status to women, equal rights including right to vote.

(2) Phase II- 70s & 80s - Phase of Revival & Activism

UN declared 70s as decade for women. It has directed the Govts. to prepare the report on status of women. Govt of India had set up a committee to enquire the status of women in India. The report was published with the title 'Towards Equality' in 1974. It was an eye opener as it brought shocking facts w.r.t women like declining sex ratio, Gender based violence, discrimination & declining participation of women in political & economic sphere. It also recommended to constitute watchdog body like National commission for women. It has resulted into changing the approach of Govt towards women. The approach was changed from welfare to developement There was growth of women organisations including organisations of muslim women like Majlis, Awaj-e-Niswaan, organisations of Dalit women like All India Dalit Women conference, 80s was full of Activism. The prominent issues in 80s were.

(i) Increasing no. of dowry deaths
(ii) Mathura rape case (rape of dalit women in Police station)
(iii) Sati at Deorala, RJ
(iv) Shahbano Judgement
(v) Approach of Govt also changed from developement to empowerment. since 6th FYP govt has introduced

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Gender components in each plans. Gradually Govt. of India has also introduced gender based budgetin

(3) Phase III - 1990s

By 1990s some new trends emerged.

(i) The growth of feminist movement. The nomenclatur of women's organisation changed they are more inspired by radical feminism. The new names adopted were saheli, Vimochana, Manushi, Jagoree

(ii) Towards 1990s women movement started getting devided on the lines of caste & religion. Initial soli-darity was lost.

lecture 9.
24/03/2017

From 1990s onwards Indian politics is getting shaped more by caste & religion & thus women issues also get mixed up.

overall assessment of women movement.

Kishwar According to Madhu Kishor, the only achievement of women organisation has been some bizare pieces of legislation.

According to Meera Desai & Usha Thakkar, women move-ment faces following challenges:

(i) challenge of identity.

(ii) Women issues are not just women issues

(iii) Division of ideological lines along with caste & religion so far they have never presented any charter of demands

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Short Note - Women Reservation in Parliament & Assemblies.

(*) The issue was discussed even before independence.

(1) Pandit Nehru -

He opposed reservation.

Why?

(a) It compromises merit.

(b) It introduce can't be rolled back if introduced.

(2) Sarojini Naidu:

opposed reservation.

Why?

(a) It will impact the confidence of women.

(b) Women can be elected on the basis of their merit.

views of the committee set up by Govt of India.

Towards Equality Report, 1974.

opposed Reservation in Parliament & Assemblies though favoured reservation in local bodies?

Why opposed?

(i) Its approach was reformative rather than radical.

(ii) Women issues are not just women issues.

(iii) It is wrong to think that men cannot represent the interest of women.

(iv) In India women movement was started by progressive men.

(v) Both men & women should work together for the cause.

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Ila Bhatt of SEWA, she opposes women reservation & suggest that Govt. should focus on economic empowerment.

Shirin Rai, feminist scholar, she also opposes reservation because it does not serve the purpose, she gives the example of Pakistan. Pakistan National Assembly has reserved seats for women but it does not mean that it has resulted into improvement in the status of women.

Prominent women politicians of all major parties like Sonia Gandhi, Sushma Swaraj, Vrinda Karat favour women reservation.

Ministry of Panchayati Raj has conducted the study on reservation for women in panchayat's it has shown positive consequences & it becomes the basis to introduce reservation in parliament & assemblies.

Laura Keenen, feminist scholar, supporting women reservation on following grounds.

(i) Women representation has been stagnant far below the proportion. for most of the years it has not been more than 8%

(ii) Women are not elected does not mean that they are not talented.

(iii) All men who are present in the parliament are not there in parliament on the basis of merit or efficiency.

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Women are not able to eg get elected because of social environment which remain patriarchal hence catalists like reservation are needed.

Conclusion -

Women Reservation is needed it will make our democracy inclusive in gender terms. It will be an empowerment measure however it is going to be one of the measure. Women Empowerment also require educational empowerment & most importantly economic empowerment.

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PLANNING AND ECONOMIC DEVELOPEMENT

- Syllabus

1. Nehruvian and Gandhian Perspectives.
2. Role of planning & public sector.
3. Green Revolution
4. Land Reforms and Agrarian Relations
5. Liberalisation and economic reforms.

- Gandhian Approach to Develo

Gandhi was not an economist in conventional sense nor he has given any systematic views on the model of developement to be adopted by India. We get the blue print of Gandhian Idea of Developement in his book 'Hind Swaraj' He was critic of the western model of developement & believed that if others also adopt same model atleast 3 more earths are needed. The Fundamental idea governing to Gandhian approac was the principle of non-violence & swaraj. Non-violence even towards nature & minimisation of needs. The pilars of Gandhian approach were:

(i) Economic Growth.
(ii) Redistributive justice.
(iii) Moral Regeneration.
(iv) E

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Gandhian approach towards way of life can be understood on the basis of his concept of seven ~~deadly~~ sins.

(i) Wealth without work.
(ii) Pleasure without conscience.
(iii) Knowledge without character.
(iv) Commerce without morality.
(v) Science without humanity.
(vi) Worship without sacrifice.
(vii) Politics without ethics.

At the time of independence Gandhians like S.N. Agarwal, Sriman Narayan. have proposed Gandhian plan. The key ideas of Gandhian plan were:

(i) Reform of Agriculture:
This will adress the hunger & unemployment. Govt. should focus on land reforms - co-operatives and rural credit.

(ii) Revival of cottage industries:
It will not only provide supplementary income, khadi was the way to adress the requirement of clothing.

Thus, the focus of Gandhian plan was to fulfill the basic necessities as a priority.

There is a misunderstanding that Gandhi was against machines & industrialisation. He was not against machines. He was only against emitating western model in Indian situation.

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His concerns were:

(i) Machines should not be pitted against human beings

(ii) Use of machines result into accumulation of wealth and increases exploitation.

Thus Gandhian approach was to make Indian villages a self sufficient entity. He was for the revival of village republic as he believed that India lived in villages. Without revival of villages the goal of Swaraj remains incomplete.

Gandhian approach was not adopted. We can see the consequences of the neglect of Gandhian Approach. The economic model which we have adopted to catch up with western countries has been unsustainable, full of conflicts. The developmental models have resulted into imbalanced growth & widening the gap b/w India and Bharat.

Nehruvian Approach to Developement:

Nehru was not also an economists. Nehru was modernists he was impressed by the achievements of USSR He wanted to India a modern & scientific society. He described his philosophy as progressive socialism & wanted India to be a society based on socialistic pattern. Nehru's real approach towards the development strategy can be understood from the 2nd FYP. which was based on Nehru- Mahalanobis model.

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→ Features:

Investment in Heavy industries.

Why?

(i) It will promote capital formation.

(ii) It will make India independent of the foreign imports of essential goods.

(iii) India can exercise more autonomy in other areas & protect itself from bargaining by western countries.

(iv) Nehru introduced centralised planning despite the fact that centralised planning goes against the spirit of federalism.

(v) Nehruvian model neglected consumer industries. Indians were to made sacrifices in short term for a better life in long term.

(vi) Nehru was not against agrarian reforms but he believed that Industrialisation will create more demand for agricultural goods & Industrialisation will provide fertilisers equipments for promotion of Agriculture.

(vii) Nehru knew that his model will create shortages of the basic commodities hence he introduced physical control or rationing & fiscal control or administered pricing.

(viii) In order to avoid income disparities nehruvian model had put gate in the commanding heights of economy and kept private sector weak to check accumulation of wealth.

(ix) Public sector will not only address the concentration of wealth it will also be providing employment.

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Nehruvian policies could not address the structural weaknesses of Indian economy. Rationing has result into black marketing. Public sectors were not working on economic logic. It was producing poor quality goods at a higher price. Nehruvian model was import substitution & export promotion. However, India could not produce such manufactured goods which can be exported.

Nehruvian Model resulted into India becoming # 'License Permit Quota Raj' which ultimately made India an Inspector Raj for overdeveloped states.

Successors of Nehru have not made corrections despite understanding the weaknesses. They rather continued with more populist policies like 'Garibi Hatao'. Garibi Hatao remained rhetoric in pre-reformed period. As good as 45% of Indian population was living below the poverty line.

- Planning And Public Sector:-

Planning is a feature of socialists countries. The idea of planning is to determine the priorities & to go for best possible use of resources. The objective of planning was higher growth & balanced development.

Planning has resulted into state achieving the commanding heights in the economy. PSUs & other public sector was the major service provider. Public sector with the exception of few PSUs started showing the weaknesses of the model. It developed certain structural

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problems like over manning, low work ethics, low capacity utilisation, excessive expenditure, fiscal deficit, absence of rational pricing policy & Negative rate of return.

Above policies became unsustainable, India came under the financial crisis. country was left with a foreign exchange which could pay the bill of imports only for a week. The credit was India in question or crisis (Sovereign Debt Crisis ~~or~~ or BOP crisis). Ultimately India was forced to change.

According to Vimal Jalan, former RBI Governor, PSUs were like old family silver where family had to spend more to keep shining the silver.

- Liberalisation of Indian Economy -

India was known as 'caged Tiger'. It was predicted that the If cage is broken India will run at the speed of free tiger. It showed the potential of Indian economy which has been caged by populist policies. It is unfortunate that India took so long to make structural adjustment. India waited for crisis to happen. One of the major situational factor which has accelerated the crisis was Gulf war & Disintegration of USSR.

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According to Amartya Sen, contrary to the prediction the sprint of Tiger was not as it should have been there is a lack of congensus among scholars as to whether external factors or economic factors led to the change in the economic policy. there is also a debate on the consequences of new model.

According to Vimal Jalan, it is good that at present there is no debate over the desirability of reforms. Now all major parties agree that there is no alternative.

→ current state of liberalisation.

According to Economic Survey, 2016-17 there has been a remarkable transition from closed & listless economy to open & thriving economy. Progress is not only qualitative it is measurable. Survey has evaluated liberalisation on the basis of 4 standard measure

(i) openess to the trade.

In comparison to size, India is trading with international economy more than expected.

(ii) openness to foreign capital.

Despite capital control the net inflow of foreign capital is as normal as any other emerging economy.

India has received FDI at annual rate of $ 75 billion which is not far short of what china receiving at the height of economic boom in mid-2000.

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(iii) Extent of PSUs

Contrary to the myth that India has large PSUs, India has significantly rolled Public sector including sectors like civil aviation, telecom & financial services.

(iv) Govt. Expenditure -

Contrary to the opinion that there is over bloated expenditure by the GOI the expenditure is not more than what is normal for the country in accordance to the level of developement of the country.

To sum up India is a normal emerging market. Pursuing the standard asian path of developement. Since 1980 there is 4.5% per capita increase in income.

According to survey, achievement is remarkable as it has been achieved under extremely competitive democratic system. It is achieved even in a situation when Govts. policy making is severely constrained. (SC Activism). However survey mentions about ineffective redistribution welfare schemes suffer from considerable miscalculation.

→ Impacts of Liberalisation -

According to Montek Singh Ahluwalia in his article 'Economic Reforms a Retrospective view'.

(i) Reforms have done well in some areas & have neglected some areas.

(ii) Reform & poverty alleviation. the percentage of population living below poverty line in 1989 was 44.5% and the absolute no. of poors was 323 million.

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In 1993-94 immidiately after reforms there was marginal increase in no. of poors BPL which becam 45.3% & in terms of number 404 million.

(iii) Between 1993-94 to 2004-05 (Based on Tendulkar committee estimates).

(a) Poverty declined from 45.3% to 37.2%
In terms of number there was an addition it became 407 million.

(b) Between 2004-05 to 2011-12 there is a faster decline from 37.2% to 21.9% Based on Tendulkar Committe report.

For the 1st time even absolute number declined from 407 mn in 2004-05 to 269 mn. Even 269 mn is a huge no. & the situation of people is above just poverty line is not qualitatively very different.
We donot have very good record record in delivering basic services like education, health, sanitation, clean drinking water.
If we want to reduce poverty to the truly marginal level we require 8% rate of growth of economy for next 20 years. With unskilled pollution & unhealthy population. We cannot achieve the targets.
The another failure of reforms is that it has not resulted into growth of employment opportunities & whatever employment has created is of bad quality.

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Indian economy has moved into middle income status. India is bound to face challenges of getting stuck in Middle Income Trap if we have not designed our reforms carefully. He suggest

(i) Tackle corruption.
(ii) End red tapism.
(iii) Invest in Human Capital.
(iv) Reform factor market
(v) Inclusion by jobs.
(vi) Rehabilitate state capacity.

Views of Amartya Sen-

Uncaging the tiger has not resulted into Tiger like sprint. The question is not overall growth but overall growth pattern. It has not resulted into corresponding transformation in the living standard. Progress on social indicators have gone down in comparison to pre-re-form period. Stagnation in Agriculture, the growth of Jump in service sector has not resulted into the benefits at the ground level because people lack skills. There is also increase in poverty in so called BIMARU states. The problem of hunger amidst plenty exist. He appreciates china, as china has invested in Basic Human capabilities & has been in a position to take benefits of Globalisation.

Vimal Jalan-

Book - emerging India - Economics, Politics & Reform.

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There is no doubt that reforms released creative energy, accelerated growth & productivity but India's record in social indicators is among the bottom countries. It would be ~~great~~ grave mistake if we do not go for critical reforms.

Land Reforms And Green Revolution.

Land Reforms

Purpose:

1. Eradication of rural poverty & hunger.

Philosophy of land reforms:

Based on socialist idea of redistributive justice.

History of Land Reforms:

There was a huge participation of peasants in national movement & land reform was one of the promises of congress.

According to Daniel Thorner, India is the most interesting case study of land reforms considering the largest body of land reform legislation & extremely large no. of poors & the magnitude of hunger.

What does land reforms indicate in India.

In case of India land reforms meant institutional reforms (state led) aiming at addressing the concentration of wealth & giving land to land less.

Constitutional provision.

Directive Principles Art 39 (B&C) makes it a constitutional obligation on Indian state to observe concentration of wealth & economic resources.

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(ii) 44th Amendment Act has repealed the right to property.

(iii) 9th schedule introduced by 1st Amendment Act contains large no. of land reform legislations.

Lecture 10
25/03/2017

- Types of Land Reforms -

(i) Zamindari Abolition:

This the only successful aspect of land reforms. However success is formal because most of the zamindars got heavy compensation become ~~tenants~~ & ~~Utilised~~ self cultivators & invested capital in setting rural industries like Rice Mills.

(ii) Tenancy Reforms:

Idea was to give security to tenants. Tenancy reforms are also comparitively successful. The most successful effort has been in Kerala & operation BARGA in West Bengal. Tenancy reforms benefited intermediate caste.

(iii) Land ceiling:

land ceiling was very crucial for land distribution but land ceiling remained one of the most weakest aspect. Laws with loopholes came into existence. People protected their land by dividing joint families, benami transfers & even gave formal divorce to their wife to protect land.

(iv) distribution of surplus land.

distribution of surplus land was the most important aspect of land reform to address poverty. one of the vision of land reform was land to tillers.

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However, there is very limited distribution that has taken place. Even govt uptill now have not been able to distribute whatever land they have acquired.

(v) Consolidation of land holding & establishment of co-operatives:

It was the next logical step even co-operative movement has been a failure. Whatever, co-operative movement came into existence Eg. Maharashtra. It is not co-operative but Joint stock Co. of rich farmers

- Since 1990s the type of developemental model India has adopted has adversely impacted even the interest of rich farmers. Agriculture has been worse affected by liberalisation. Agri. growth has stagnated. Rural areas are suffering from the problem of hunger & malnutrition even when procured grain is getting rotted in warehouses.

→ Causes of the failure:

(i) Lack of Political will

(ii) The presence of dominant caste in congress.

(iii) Lack of organised peasant movement in the country.

(iv) Lack of land records.

(v) Corruption.

→ Views of scholars:

(1) Gunnar Myrdal: calls india a soft state & that is a reason that even person like Nehru failed to achieve success in land reforms.

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(ii) Atul Kohli: State in India lacks political & organisational capacity to confront the power of propertied class. He gives the example of kerala & WB where land reforms could be successful because of the ideology of political party & because of the base of communist party was amongst poor. On the other hand despite rhetoric, congress continued to be the party of dominant caste.

(iii) Francine Frankel:
The accomodative politics persued by Indian state has jeopardised the radical agenda

(iv) Sudipt Kaviraj & Pranav Bardhan.
Both believe that state in India expresses the interest of Bourgeoise classes. There has been unenthusiastic implementation because of disproportionate influence of propertied classes.
We can also apply concept of overdeveloped state given by Hamza Alavi in Indian context.

→ Suggestions:

(i) The importance of land reform & any redistributive strategy has lost the imagination. In contemporary times it appears an outdated approach. Hence, there is an responsibility of intellectual class to bring agenda of land reform in public sphere & matter of public reasoning.

(ii) It is the responsibility of civil society to organise peasants & landless labourers to create pressure groups on the Govt.

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(iii) Govt. of India should start taking the issue seriously because failure of land reform, failure to address rural poverty & hunger have resulted into the left wing extremist.

(iv) There is need to strengthen legal machinery, address loopholes, maintain land records, utilise NGOs for identification of beneficiaries.

(v) Govt. can constitute lok adalat to dispose off the old legal disputes.

(vi) Prevent Agricultural land transfer for non-agricultural uses.

GREEN REVOLUTION:

→ Purpose:

Purpose was to make India self sufficient in the production of food grains.

→ Philosophy:

Production centered approach based on the philosophy of capitalism. Which results into the use of high yeilding variety seeds, fertilisers, pesticides, implements thus, it is capital intensive. It also cause intensive use of land.

Green Revolution started in 1961 as intensive agricultural Developement Programme (IADP) later on Initially 14 districts were selected on experimental basis & lateron extended to 114 districts in the form of Intensive Agricultural Area Programme in 1965.

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Outcomes:

It made India self sufficient in foodgrain production. Since there is a substantial increase in the output, it is treated as a revolution. Agricultural growth increased at the rate of 3-5% p.a. which was an encouraging rate of growth considering colonial period.

According to VKRV Rao, the gains of GR came at the substantial social and political cost. It has increased the gap b/w rich & poor. It has increased rural indebtness because the small & marginal farmer had to borrow to purchase implements & seed. It has reversed the process of land reforms. Small & marginal farmers actually lost the land.

According to Economists like G.S. Bhalla & G.K. Chadda, Green revolution has increased the Agricultural wages, total income by 4 times & has strengthen the bargain-in power of workers. On t

on the other hand Economists Hanera, SS Grewal suggest that there was no increase in the real wages. There was inflation in the rates of food grains. there has been decline in living standards. Mechanisation displaced labour. It also resulted into the migrant labour. It started creating social unrest. It destroyed traditional dependence b/w the farmers & labourers.

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Rudolph & Rudolph have analysed the political effect of Green Revolution as it gave rise to 'Bullock capitalist' strengthened the role of caste in Indian politics.

other scholars like T.K. Oommen, Utsa Patnaik, Pranav Bardhan all focused on the poor distributive aspect giving rise to frustation & unrest.

Vandana Shiva in her book 'Violence in Green Revolution' published in 1993 mentioned about the negative impact on society as well as on nature.

According to former president K.R. Narayanan "If we will ~~eg~~ neglect the task of land reform it will give rise to counter revolution which has already started in rural areas. Green revolution should not end up giving rise to red revolution."

Q. Analyse the political Economy of Growth and Distributive Justice in India.

(i) India is a welfare state.
(ii) It mention directive Principle specially Art 39(b) & (c).
(iii) Indian state adopted the role of developemental state under Pandit Nehru.
(iv) However India's achievement w.r.t. eradication of poverty & human development indicator has not been encouraging.
(v) there is a lack of regional imbalance & regional growth.
(vi) Political scholars have analysed the politics of Economic growth in India. Some of the prominent views can be expressed as -

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(A) Hamza Alavi has suggested that post colonial state negotiates on behalf of the 3 propertied classes.

(a) Foreign Bourgeoise
(b) Indegenous Bourgeoise.
(c) Feudal class.

(B) Gunnal Myrdal: emphasised on poor capacity of India. Calls India as a soft state

(C) Atul Kohli mentions the problem of crisis of Governibility faced by Indian state. Crisis of Governibility is a result of lack of stable alliances, poor capacity and poor policies.

(D) Francine Frankel. suggest that Indian state persued accomodative politics which jeopardise its radical agenda.

(E) Sudipt kaviraj. suggest that Indian state serves the interest of the Bourgeoise class.

Thus above analysis highlight the class characteristic of Indian state & lack of will & capacity.
Ruddph & Rudolph call Indian state as 'paymorphous' like Hindu Gods hence it keeps on balancing different sections of the society.

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FUNDAMENTAL RIGHTS

→ Concept of Fundamental Rights:

The idea of Fundamental Rights is based on the recogni-sing the sphere of sovereignty of the Individual & limi-ting the sphere of state's sovereignty. Thus Fundamental rights check the arbitrary exercise of the state's power & ensures the rule of law. The Fundamental Rights are based on the the philosophy of Natural Rights. According to which rights are not conferred by the state they are rather confirmed by the state

Indian scheme deviates from the original idea in some context.

(i) In Part III it is not just prohibition against state are mentioned but also contains ~~freeses~~ for clauses for the intervention.

(ii) Unlike other countries Fundamental Rights are protec-tions available not only against the state but also against the society.

(iii) In India certain Fundamental Rights are also made available to non-citizens.

→ Scheme of Fundamental Rights.

(i) Article 12 - Definition of state

(ii) Article 13- Judicial Review.

(iii) Article 14-18- Right to Equality.

(iv) Article 19-22- Right to Freedom

(v) Article 23&24- Freedom from exploitation

(vi) Article 25-28 - Freedom of Religion

(vii) Article 29-30 - Cultural & Educational rights of Minorities

(viii) Article 31- repealed - Right to Property

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1st A.A 1951

(ix) Article 31A - saving of certain laws related to E Acquisition of estate, mines (nationalisation)

(x) Article 31B - 9th schedule - Validation of certain acts & regulations.

25th A.A. 1971

(xi) Article 31C - saving of laws giving effect to certain directive principles
- 39(b) & 39(c) can't be challenged on violation of Article 14, 19, 31

42nd A.A. 1976 - If govt. wants to implement any directive it cannot be challenged.

Soul of constitution → Preamble, FR, DPSP

(xii) Article 32 - Right to constitutional remedies

(xiii) Article 33 - Restrictions on certain...

(xiv) Article 34 - When martial law is in force.

(xv) Article 35 - ~~only parliament can make laws on some cases.~~
- under Part III parliament has to determine the punishment for the acts which are considered as offences. only parliament can do so, state legislatures have been deprived.

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JUDICIAL REVIEW

Q. Explain the concept of Judicial Review and the doctrines of Judicial Review applied by Judiciary in India.

Q. Explain the doctrine of Basic structure

JR
↓
USA

JR — USA → Marbury Vs Madison case

→ Provisions Related to Judicial Review:

(i) Art. 13
(ii) Art. 32
(iii) Art. 131
(iv) Art. 132
(v) Art. 133
(vi) Art. 134
(vii) Art. 136
(viii) Art. 226

→ Doctrines of Judicial Review -

(i) Presumption in favour of the constitutionality of the law.

(ii) No Suo Moto application of Judicial Review except in case of enforcement of FRs.

(iii) Doctrine of severability - entire law not to be declared invalid Eg. IT Act, Anti-defection law.

(iv) Doctrine of eclipse - coming under shadow.
Whatever law when you look under light of constitution looks dark → null & void.

(v) Doctrine of Liberal Interpretation. Menaka Gandhi

(vi) Doctrine of Literal Interpretation. AK Gopalan

(vii) Doctrine of Procedue established by law.

(viii) Doctrine of Due process of law.
(a) substantive due process
(b) Procedural due process.

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:Due process of law

↓

Natural Justice

Procedural due process	Substantive due Process
↳ questioning wisdom of executive	↳ questioning wisdom of law
Eg. Shatrugan Chauhan Case	

Eg. In Shatrugan chauhan case SC asserted Procedural due process that held that if there will be unnecessary delay in case of mercy petition SC can convert Death sentence into Life imprisonment.

(ix) Doctrine of prospective overruling.
- SC can overrule its judgement - but at prospective date.
- 1st applied in Golaknath case.
- This is related to the interpretation of the constitution.
- It is different from Review Petion
- taken from USA.

(x) The Doctrine of Colourable legislation and Doctrine of Pith and substance
- interpretation of the lists

(xi) Doctrine of Basic structure
- SC has not accepted Doctrine of waiver.
- Doctrine of waiver - USA
  ↳ not in India.

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DOBS ↑ To analyse amendments only not any other law

Lecture 11
27/03/2017

DOCTRINE OF BASIC STRUCTURE-

What is doctrine of Basic structure?

It is a judicial innovation of SC of India which makes SC of India as the strongest court in the world.

Why?
No other court including USA SC has power to challenge the amendment.

Why?
Judicial Review implies that Judiciary struck down any legislative & executive act which is not as per the constitution. However, in case of basic structure judiciary can challenge the provisions of constitution added by amendment. ~~Amen~~Amended provisions are also part of constitution. It is like Judiciary challenging constitution itself. Judiciary assuming the role of constituent assembly. whereas nowhere Judiciary has given such role as judiciary is least representative & least accountable. Art. 368 gives ~~pea~~ constituent power to the parliament parliament can make amendments in the constitution by adopting procedure as given in Art. 368.

Evolution of Doctrine of Basic Structure-

Context of the evolution.

constitution contains some contradictory principles w.r.t part III & IV

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What is there in Part III

Part III guarantees 6 FRs. They are primarily civil rights based on the philosophy of liberalism. FRs are given a priviledged position because there also right for enforcement of FRs. Article 32 Art. 13 gives explict pocoers to Judiciary to declare any law null & void if it abridges or take away ony of the rights given in part III.

What is there in part IV

Part IV also contains many rights of social & economic nature which aims to establish India an egalitarian society. They are inspired by socialist vision. As per Art. 37 they are not enforceable in the court of law, yet they are 'Fundamental' in the governance & it is a constitutional obligation on the govt. to give effect to these directives in the policies & laws. Unlike FRs there is no right to constitutional remedies for enforcement of rights given in Part IV. these rights have no automatic enforcement.

Why dispute emerged?

① Champakam Dorairajan Vs State of Madras, 1950

significance:

1st case involving the dispute b/w FRs & Directive Principles

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What was that issue?

Petitioner, A Brahmin women challenge the reservation policy w.r.t. admission in educational institution pursued by state of Madras. Once constitution has come into existence policy abridges FRs ie. Right to Equality.

What was the dilemma for Judiciary?

(i) Art. 13 & Art. 32 makes judiciary the Guardian of FRs

(ii) Art. 46 of the Directive Principles suggest that Govt. shall take measures for educational & economic interests of SCs & STs & members of other weaker sections.

(iii) Since constitution is a fundamental law. None of the provisions should go out of relevance. considering inequalities prevalent in Indian society. It would not have been appropriate to neglect the goals given in Part III.

What was the solution given by Judiciary?

Creative interpretation of the term law. given in Art. 13 (2).

What creative interpretation?

Judiciary made difference b/w ordinary law & amendment. Judiciary held that the term law used will not include amendment. It would simply means ordinary law.

Art. 13 / FR
(1) Pre-const° law
(2) law made by Parliament

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What Judiciary suggested ?

Parliament can abridge FRs for implementation of the Directive Principles but not by ordinary law, they can do so only by amendment of the constitution.

Response of the Govt.

Govt. brought 1st Amendment Act in 1951 which added following provisions in the constitution:

① Art. 15(4) – According to which state can make any special provision for advancement of socially & educationally backward classes of citizens & SCs & STs.

① It added Art. 31(A) & Art. 31(B)

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② Shankari Prasad Vs UOI case, 1951.

Significance-

1st case challenging the scope of amending power of Parliament.

What was challenge ?

It has challenged 1st Amendment Act. 1951.

Approach of Judiciary ?

Upheld the validity.

Amendment were further challenged in subsequent cases like 4th Amendment Act in Sajjan Singh case. SC continued with the above approach.

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③ Golaknath case, 1967

significance of year 1967.

Dawn of the Congress system -

17th Amendment Act was challenged in Golaknath Cas

Significance -

1st case where Judiciary has applied the doctine of prospective overruling. It is also considered as the 1st case of Judicial Activism.

opinion of Judiciary -

Judiciary held that the term law used in Art. 13 (2) will include amendment also.

What is the implication?

Even by amendment FRs cannot be abridged.

Analysis of SCs decision.

Judiciary was accused of judicial activism on beha If of which & destroyed the harmony which is present b/w Part III & Part IV.

Response of the Govt?

24th Amendment Act 1971 & 25th Amendment Act, 197

① 24th Amendment Act 1971

- Added clause 4 in Article 13. - Nothing in this artic shall apply to the amendment of the constitution unde Article 368.
- Added clause 3 in Article 368. nothing in Art. 13 shall apply to the amendment made under Article 368

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- It changed the title of Article 368. Earlier it was procedure of Amendment. but now it became power & procedure.
- It made mandatory on the part of President to give assent to the constitution Amendment Bill.

(ii) 25th Amendment Act, 1971.

Added Article 31 (C).

In case any law which aims at implementing the objectives found in 39 (B) & 39 (C) such law shall not be declare null & void on the basic of Art-13.

---

(4) Kesavanand Bharti case, 1973

24th & 25th Amendment Acts were challenged.

What was the approach of SC-

uphold the validity of both 24th & 25th amendment act. but pronounced the doctrine of basic structure.

Why upheld?

Judiciary understood the mistake in the judgement in Golaknath case. Judiciary was criticised for -ve Activism & destroying the harmony b/w Part III & IV. 25th Amendment Act established the harmony.

Minerva Mills 1980

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What is Doctrine of Basic Structure?

Parliament has power to Amend the constitution to whatever extent but such amendment should not destroy the basic structure of the constitution.

What is the logic?

According to Judiciary there should be difference b/w Amendment of constitution & re-writting the constitution. Amendment cannot be done in such a way that original constitution is not found anywhere.

Responses to the doctrine of Basic structure.

It resulted into the mixed responses. on one hand Judiciary was criticised for acting as a super legislature, an example of Judicial overreach on the other hand Judiciary was congratulated for playing the role of protector of the constitution.

There was lack of consensus even in constitutional bench which gave the judgement. It took an judiciary ~~for~~ extraordinary long time to the judgement. it has been the ~~lege~~ longest judgement out of 13 judges 7 favoured & 6 were against. Thus the doctrine came into existence by affirmative vote of single ~~judge~~ judge. till Ram Janmabhumi case →

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Application -

1st case where Judiciary has applied the doctrine of Basic Structure was Minerva Mills case, 1980.

What was challenge?

42nd Amendment Act was challenge.

What 42nd Amendment did ?

It was considered as a mini-Constitution.

SC has declared following Articles Null & Void.

(i) Art. 368 (4). -

Any Amendment made under Article 368 shall not be challenged on <u>any ground in any court</u>.

(iii) Art. 368 (5).

For clearing all doubts, there will be no limitation whatsoever on the amending power of parliament.

Judiciary has declared above two as null & void.

(iii) 42nd Amendment Act made amendment in Art. 31(c) now. protection was extended to all directives & not just 39 B & C. Judiciary restored the situation as it was existing under 25th Amendment Act.

Analysis -

(i) In Golaknath case, Judiciary disturbed harmony & established the supremacy of FRs over Directive Principles. which has established in Champakam Dorairajan case.

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(ii) In 42nd Amendment Act. Govt destroyed harmony which govt has established in 25th Amendment Act. Govt tilted the balance towards Directive Principles making FRs clearly sub-ordinate to the directives. MI.

(iii) Minerva Mills case restored the balance & harmon

In 2007, I R Coelho Vs State of Tamil Nadu. SC held that the doctrine of Basic structure can also be applied to examine the validity of law placed under 9th shedule However it will apply on the laws which have been inducted in the 9th schedule on and after 24th April 1973 the date of Keshvanand Bharti case Judgement.

Evaluation of Doctrine of Basic Structure.

According to Zia Modi (Book - The ten judgements that changed India), Doctrine of Basic structure remains contested till date It may be wrong from Academic perspective But it proved blessing in disguise in practicle sense. Had Judiciary not given the doctrin India would have gone on the way of authoritarian ism as happened in other third World countries. uncertain democracy is preferable over certain tyranny. It is often suggested that SC should provide the comprehensive list because it curtail the powers of parliament to make laws But it is better to keep the list open ended to avoid any contingency.

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It is also suggested that once coalition era has come into existence, it will be extremely difficult task for Govt. to bring such far reaching amendments. Hence such there is no need of Basic structure. But judiciary safety valve should retain it as safety valve.

It is also suggested that constitutional Bench should take decisions by 2/3rd majority rather than by simple majority but that is also not required considering the unique situations prevailing in the country.

Note -

The criticism of Basic structure is that Judiciary gives primacy to mere physics over what is written in Black & White.

→ Relationship between Fundamental Rights and Directive Principles.

(i) Initially there has been the dispute w.r.t. the primacy of FRs & Directive Principles.

(ii) Reason for Dispute.

(a) Based on contradictory philosophy ie. Liberalism and Socialism.

(b) Contradictory provisions in Art. 31, 32 & 37.

(iii) History of the dispute.

(a) Champakam Dorairajan case.

(b) Approach of Judiciary - judiciary gone for harmoneous construction.

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(c) Golaknath case - judiciary destroyed harmony.
(d) 25th A.A. restored harmony.
(e) K.B. case Affirmed the harmony
(f) 42nd A.A. destroyed the harmony & gave primacy to DPs.
(g) Minerva Mill case - SC again affirmed the harmony.

- the dispute has been because of the lack of understanding of the perspective of constituent assembly
- Part III & Part IV are not supplementary & exclusive rather they are complementary.
- In Motilal Nehru report, 1928 both category of rights were present together.
- According to B.N. Rao, adviser to the constituent assembly both were presented as an integrated scheme but later on seperated?

Why seperated?
Country lacked resources. If these rights were made enforceable it could have created constitutional crisis though they are not enforceable yet they are fundamental.
According to Ambedkar if they lack legal sanction DP have political sanction.

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Judiciary which was initially biased against DP has itself became champion of these rights by liberal interpretation of Art. 21 many DPSPs are now having the status of FRs.

Art. 21 A introduced by 86th A.A. show that as & when resources permit DP can be brought under Part III

According to Granville Austin, Preamble, FRs & DPs together form the soul of constitution. where soul in indivisible & hence these 3 parts are not seperate from each other together constitute an integrated scheme.

RIGHT TO EQUALITY

Q. Discuss the Nature of the idea of Equality as found in the constitution in general & Part III in particular.

Q. Discuss the politics of Reservation policy. Do you think that reservation policy is one of the most important measure for upliftment of backward section of the socity.

According to Dworkin, Equality is sovereign virtue. Equality is linked to the concept of Human Dignity. Indian constitution acknowledges the priority of equality given over right to freedom.

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Constitution looks at ~~the~~ Equality in a comprehensive & substantive sense. In Indian constitution we found the concept of differentiated equality. constitution enables state to perform affirmative action or positive discrimination to achieve substantive Equality Rather than just emitting from western countries the nature of right to equality aims to address the specific forms of inequalities & injustices found in India. Unlike western countries Right to equality not only prohibits state it also prohibits private persons from practicing discriminations on the basic of caste religion gender. Art. 14 not only establishes equality before law but permits reasonable classification among citizens for the sake of equal protection of law. Art. 15 on one hand prohibits discrimination by state & society & but at the same time enable state to make positive discrimination.

Art. 16 not only provides equality of opportunity it also establishes 'level playing field' as state can make special provisions in favour of the weaker section.

Art. 17 addresses the unique practice of untouchability

Art. 18 abolishes hereditary titles & aims to make India from feudal to modern society based on achievements.

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RESERVATION POLICY

Lecture 12
28/03/2017

According to Ramchandra Guha, Reservation Policy generates more heat than light.

According to Protapbhanu Mehta, Reservation Policy diminishes our sense of self. Because our opinion in public is very different than our opinion in private.

According to prof. Yogendra Yadav Reservation Policy has reached dead end & it raises more question than answers.

Above statements show that reservation policy is a matter of 'high politics'.

- Constitutional scheme w.r.t. reservation.

1. Reservation in Parliament & State Legislative Assembly
2. Reservation for the members of SC, ST community as well as for women in panchayats & Municipalities.
3. Reservation for members of SC, STs communities in educational institutions (including private institutions excluding minority institutions).
4. Reservation for SC, ST community in public sector employment
5. Reservation in public sector employment with consequential seniority in promotions.
6. Reservations for OBCs in educational institutions as well as public sector employment.

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- What are debatable issues?

1. Reservation for what?
2. Reservation for whom?
3. Reservations till what time?
4. Reservations in superspeciality jobs & superspeciality organisation like IRSO, DRDO, Armed Forces.
5. Reservations for economically weaker sections.
6. Reservation in Private sectors.
7. Conversions & Reservation.
8. Criteria of backwardness.
9. Inclusion & Exclusion.

- What type of policy is reservation policy?

Reservation or quota is considered as strongest form of affirmative action. Reservation is not very common affirmative action. US SC has declared Quotas for African American as unconstitutional.

According to Prof. Andre Beiteille, Reservation in India has been introduced by Britishers. We cannot think that colonial govt. had any good intentions to help the poor & weaker sections in India. The reason is poverty & exploitation has been less because of caste system but because of the colonial policies of the British govt.

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Prof. Andre Beteille & Pratapbhanu Mehta are critical of Reservation Policy. They have resigned in protest of Govt. policy of introducing reservation in higher educational institutions. They resigned from National knowledge commission. on the other hand scholars like Yogendra Yadav & satish Deshpande are not against Reservation. Prof. Yogendra Yadav recognised that it was not a wasteful journey However he believes that Reservation policy needs to be revised. According to Prof. satish Deshpande there is a lack of understanding w.r.t the purpose of Reservation policy It is often understood as an employment guarantee scheme or poverty alliviation scheme.

According to Prof. Amit Thorat, Reservation should not be understood as an Employment Guarantee scheme or Poverty Alliviation scheme the basic purpose of Reservation is that it is policy tool to end prejudices against certain communities which have been excluded. The purpose of reservation in India is to give representation to those sections who have not been present in Administrative or political systructure because of caste system. In previous centuries there was Reservation in favour of upper caste in Education & employment.

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Reservation is also a sort of compensation with the idea of social justice in favour of those who have been deprived. He suggests that there is need to sensitise children at the school level about the types of injustices, inequalities that have been present in India & why reservation is justified. Thus Reservation is for specific form of discrimination which was based on caste. Hence, historical injustice is to be the criteria. Reservation policy has altogether a different purpose. It cannot be given on economic ground as govt. has other policies of poverty alliviation where the poor members of upper caste can also have access. Similarly Govt. have programs like MGNREGA which are available to all communities.

- Debatable Issues -

① Reservation for what?

It is not to address poverty or unemployment but to address Historical injustice which certain sections have faced because of caste system. The justification for ST is their exclusion & deprivation for centuries. Constitution talks about backwardness as a criteria. Constitution does not determine the criteria of backwardness. Hence there is a clarity w.r.t the reservations for SC & ST community. But no clarity as to which caste to be included in so called OBC section.

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At present there is demand from Jats, Patidars, Marathas & Kapus for inclusion.

Approach of SC towards backwardness-
there has been lack of consistency.

(i) In Balaji Vs state of Mysore case 1963.
SC held that caste may be one factor but not the sole factor or even the dominant criteria.

(ii) Indira sawhani case, 1992
SC held that caste not only the main criteria, it can be the sole criteria & in India caste is class. Those belonging to lower caste also belongs to lower class.

(iii) In Ram Singh & others Vs UOI & ~~others~~ case, 2014
Judiciary has held that caste may be the prominent criteria for the easy determination of backwardness yet we have to see criteria beyond caste. Caste court suggests to look for new paradigm & not just caste court also suggested to go beyond historical injustice & look for new form of injustices.

- Above judgement of SC has to be seen in relation with its judgement in Nalsa case where SC has instructed the Govt. to provide the members of transgender community reservation within OBCs.

OBC reservation is more of a political game rather than reservation. As more and more

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communities are added within OBCs it is as good as an open category.

- Reservations in Promotions-

In Indira sawhani case, SC held that Reservation should be only at entry level & not in promotions. Govt. has brought 77th Amendment Act to give Reservation in promotions for members of SC, ST community. 77th Amendment Act was challenged in Ajit Singh case. SC held that Reservation in Promotions is permissible but govt. should introduce Catch up Rule. Govt. Brought 86th Amendment Act to nullify catch up rule & provided for reservation with consequential seniority. 85th Amendment Act was challenged in Nagraj case, SC accepts the validity but held that reservation in promotions with consequential seniority can be permitted if Govt. provides quantifiable data of under representation Govt. has to take into consideration the guidelines mentioned in Art. 335 related to "Administrative Efficiency".

Previous Govt. has proposed 117 constitution Amendment bill to nullify SCs judgement in Nagraj case It would have ended the requirement of collecting data & the riders present in Article 335.

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- Present status:
Bill has been lapsed, thence the ruling in Nagraj case is applied. Recently SC has struck down a action of Karnataka Govt. providing reservation in promotions without having quantifiable data.

- Reservations in super speciality jobs & research institutions like ISRO, DRDO.
In Indira Sawhani case, SC held that no reservation in above situation. But in PGIMER Chandigadh case, SC has permitted reservation in superspeciality Again AIIMS case, SC has stayed the reservation in superspeciality.

- Quantum of Reservation -
In Indira Sawhani case, SC held that Reservation beyond 50% will go against equality of opportunity But where there are compelling reasons some relaxations can be granted. Presently TN Govt. policy of giving 69% reservation is subjudice.

- Reservation in Private Sector -
National Commission for Backward classes has recently recommended union Govt. to introduce reservation in Private Sector.
Why?
(i) Rolling back of the Public Sector.
(ii) Private sector also takes lot of benefits of Govt. services like tax Holidays.

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(iii) selection in private sector in India is not based on merit there have been intended discrimination against the members of Dalit community. Social

(iv) Social Responsibility of Private Sector

- Arguements Against Reservation in Private sector.

(i) Govt. cannot shift its burden on private sector.

(ii) Quota is not the best ~~best~~ way to impose Corporate Social Responsibility.

(iii) In order to make Private sector competitive merit should be the criteria.

(iv) It should result into brain drain.

(v) It will be demotivating for foreign companies going for FDI in India.

(vi) Private sector works on Hire & Fire.

(vii) They are not expected to keep NPA.

(viii) once reservation in entry level then govt. will introduce in promotions.

- What is the way forward?

Reservations in Private sector is not advisable but like USA govt. can impose "Diversity Index". Workforce of a company should have representation from different sections of the community.

Govt can establish equal opportunity commission as found in western countries & suggested by Madhav Menon committee. If a person feels that he has been

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discriminated on Arbitrary grounds he can seek redressal.

- Time Frame

Reservation Policies are enabling policies. Hence, Reservation cannot continue endlessly. However, in India it doesn't seem that Reservation is going to an end in near future. On the other hand reservation has generated an race to bottom.

- Conclusion -

Reservation for members of SC community is available only when they remain Hindu. Now it is permitted even if they convert to Sikhism & Buddhism. The Dalit member will loose the benifit of reservation if he or she converts to Islam or christianity.

KPS Manu Vs Chairman Scrutiny Committee

If a person of a Dalit community converted to other religions like christianity & Islam & if his 2nd generation opt for re-conversion then Reservation can be granted if the members of the community accept the reconversion.

- Conclusion -

According to Yogendra Yadav, there is a need to adopt new methodology based on multi layed deprivation index or disadvantaged points.

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He suggest 4 parameters :-

(i) It should be intellectually sound.

(ii) Administratively & Financially Viable.

(iii) Politically Defensible.

(iv) Morally Justiciable.

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RIGHT TO FREEDOM

→ Freedom of Speech & Expression. (Art. 19)

Art. 19 contains six freedoms. None of the freedom is absolute there is a reasonable restriction on all. The sub clauses determine the conditions for putting restrictions. only legislature & non executive can impose restriction. Court has power to challenge the reasonability of law. Thus the doctrine of due process of law is inherent in Article 19.

→ Freedom of speech & Expression.

Q. What is the status of Fundamental Right to Freedom of speech & Expression in India. What are the major challenges on exercise of Freedom of speech & Expression.

According to J.S. Mill the most important right is freedom of speech & expression. our constitution also makes it the 1st freedom. Freedom of speech & Expression is a condition for existence of a democracy. However the scope of enjoyment of freedom of speech & expression remains contested.

According to Salman India is passing through cultural emergency. There are restrictions on the freedom of speech & expression on artist, authors. Instead of granting protections to artists, academicians

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Freedom of Speech & Expression has always been given prize position. We can quote voltaire I disapproved what you say but i defend to death your right to say. ,

According to Noam Chomsky. freedom of speech & Expression implies tolerating the views with which itotally disagree. Thus toleration is a pre-condition for exercise of freedom of speech & expression. In India. freedom of speech & Expression face following challenges.

(i) Sedition
(ii) Contempt of court.
(iii) Defamation
(iv) Hate Speech
(v) Privileges of Parliamentarians.
(vi) The misuse of The Rights by Media.

(1) Sedition.

Sedition is not the ground mentioned in Art. 19(2) as a basis for limiting freedom of Speech & Expression. There was discussion in Constituent Assembly yet they have excluded sedition. So far Section 124 A of IPC has not been declared null & void. Govt. continue to use section 124 A to curb political dissent

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What is the problem?

Section 124 A defines sedition as, incitement of feelings against Govt. established by law in India.

Even Tilak has tried to show that there is difference in Rajdoh & Rashtradoh. Leaders like Gandhi, Tilak have been accused of sedition. Pandit Nehru in 1951 held that sedition laws are obnoxious & highly objectionable & sooner we get rid of it, better it is. Subsequent govts. have not amended or repealed section 124 A it has been used against political opponents even against cartoonists like Asim Trivedi, writers like Arundhati Roy. There is a lack of consistency on the matter in the views of SC.

(i) In Ramnandan Vs Allahabad HC declared section 124 A unconstitutional 1958

(ii) Kedarnath Vs State of Bihar.
SC held that it is not unconstitutional but it should be interpreted narrowly. otherwise unsustainable.

(iii) Indradas Vs State of Assam (2011).
only when it result into incitement to eminent lawless action it can be treated as crime

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(10) Balvant Singh Vs State of Punjab.

Even raising slogans against country or advocating violence is not a sedition. Until & unless it results into real incitement to offence. R

Penalty Under Section 124 A

It may result into imprisonment upto 3 yrs or life imprisonment with or without fine.

(2) Defamation.

Defamation is a ground mentioned in Art. 19 (2). Section 499 & section 500 deals with defamation. Defamation is both a civil wrong as well as criminal offence. However in most of the countries it is not a criminal offence. In civil wrongs defamation is decided on the basis of tort law or case to case basis.

Damages can be awarded on probabilities.

Section 500 mention the penalties in case of Criminal offence. It prescribes for minimum imprisonment of 2 yrs or more with or without fine. However, damage has to be established beyond reasonable doubt. It is an offence of compoundable bailable & non-cognizible nature. Mere filing of FIR will not result into arrest.

SC in 2016 in Subra Manyam Swami case has upheld the validity of section 500 of IPC.

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Lecture 13
29/03/2017

(3) Contempt of Court

U/A 19 (2) ~~Re~~Contempt of court is a ground restrict freedom of speech & Expression. Both SC & HC are court of records & have power to punish for the contempt. In 1971 parliament has passed contempt of court Act defining the scope of contemp:

(1) Civil contempt
It means willful disobidience to the order.

(2) criminal contempt
It means interfering in the course of justice, jeopardising the dignity of the court.

Problem:

(i) Contempt of court power has been used to check any criticism of courts judgement & to protect erring judges.

(ii) It has been used against media.

(iii) In 2006 contempt of court Act was amended & it is suggested that truth in the speech is a self defence.

In Mulgaonkar case, SC has issued guidelines w.r.t. the use of contempt of court. It will be done only when there is a malafide intention to jeopardise the dignity of the court. It will not be used to protect erring judges.

Analysis
Healthy criticism is a feature of Democracy. It is said that justice cannot be cloistered virtue. It has been suggested by scholars like Dworkin that people

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debating in public is never against the interest of good laws & governance. Former justice Krishna Ayyar has suggested that Judges should never loose the temperament. Administration of justice should be with cool mind unaffected by the criticism.

Suggestions:

Power should not be used to check healthy criticism It should be used only in case there is something which scandalise the court & obstruct the administration of Justice.

④ Priviledges of Parliamentarians

Parliamentarians are given certain priviledges so that they can work without fear or obstruction. constitution mention Freedom of speech & Expression as a privilege of Parliamentarians & also suggest that parliament & state legislature should codify priviledges.

Problem:

No attempt has been made to codify priviledges so far What is the consequence?

At times priviledges has been invoked to curb the freedom of press. Parliament has power to punish for its contempt as well as for breach of privilege.

Solution:

Codification of Priviledges so that boundaries are well defined. It could be easier for judiciary.

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SC is a guardian of FRs. At times it become difficult for SC to fullfill its constitutional obligation. O/A 122 there is a restriction of judiciary w.r.t the interference in the procedure of parliament. As of now privileges have a primacy over FRs (Search light case).

⑤ Hate Speech.

Uptill now there is no law defining what could constitute a hate speech. Hate speeches are very common during elections there is no concrete parameter to determine hate speech. SC in Pravasi Bhalai Sanghatan Vs Union of India case has directed Law commission to come up with the definition of Hate speech & to prescribe punishment. Law commission has recently submitted its repost where it has defined hate speech. It has also suggested certain amendments in IPC prescribing punishment on Hate speech.

⑥ Freedom of Press.

Unlike USA freedom of Press is not explicitly mentioned In India it is a part of Freedom of speech & Expression. In Brijbhushan Case, SC explained following features of the right:

(i) there is no censorship on media except on movies.
(ii) freedom of press include freedom to collect information, publish & circulate.
(iii) In involves freedom to decide the volume of publication.

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Situation in India -

- Paradoxical

India is ranked even lower than Afghanistan in terms of freedom of Journalists. There is a loss of editorial freedom. There are incidents of use of force & violence against reporters & journalists.

- On the other hand media in India have become 'self perpetuating entity'. commercialisation in media has created a nexus among politicians civil servants. corporate groups & criminals. Mainstream Media has become 'eco-chamber of elites' ie. why there has been enormous growth of social media. In order to curb the freedom of social media govt. has brought IT Act. section 66A which is now declared null & void in Shreya Singhal case. was considered as having chilling effect on freedom of speech & Expression.

Leveson Report of British House of Lords mention many dis-functional features of Mainstream Media which is even applicable for India. TRAI (Telecom Regulatory Autority of Ind.) have also brought a report on media highlighting the misuse of powers by Media

It is to be understood that Media enjoys power because Media have revolutionary role in the struggles of common man. media has rights not for itself but to serve the people. It is for this reason Media is called as Fourth estate (4th pillar of democracy).

J Pulitzer has held that corrupt & self perpetuating Media is a dangerous entity. Hence, media should understand its social responsibility.

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former PM has suggested that: self regulation is best for media.

former US President Thomas Jefferson has held that i will prefer free press & no govt. rather than govt. without pre-press.

Pandit Nehru has also held that Freedom of press with all dangers involved is preferable over press without freedom. Hence media should understand its responsibility & should become the voice of common man & should not be misusing its power.

→ Note:

Defamation:

SC has held that reputation of a person is an integral component of FR to Life. Reputation of a person cannot be allowed to be crucified for the sake of freedom of speech & Expression of someone.

→ Art. 20 - self study.

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Article 21-

Related to Right to Life.

Q. Do you support the view that capital punishment or Death Punishment should be abolished in India or it should be retained to be used only in case of heinous crimes like Terrorism. Substantiate your view.

Q Discuss the approach of SC w.r.t. Death Penalty.

Global Trend:

Global Trend is in favour of abolishing death penalty. Recently more than 140 countries have voted in favour of resolution putting moratorium on death penalty. Govt. of India voted against the resolution.

UN Declaration of HR - directs countries to punish abolish inhuman punishment.

International criminal court which have been established for the trial of crimes like Genocide & crimes against Humanity does not prescribe death penalty. The Maximum punishment is life imprisonment.

Verma committee set up to give suggestions for ame ndments in criminal laws did not support Death Penalty for the crime of rape.

SC-

SC is also against death penalty & has been to humanised capital punishment.

(i) In Bachan Singh case SC has given the doctrine of rarest of the rare. It means award of death penalty is an exception rather than rule.

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(i) In Machhi Singh case, SC has suggested in what situation rarest of the rare to be applied. Death Penalty to be given only in a situation when it appears that Life Imprisonment would not be appropriate considering the crime from the perspective of Justice. However above doctrine creates the scope for discretion of the judge & will vary from judge to judge.

(ii) SC is trying to humanise death penalty, In 2014 there are 3 important judgements.

(a) Shatrughan Chauhan Case by which SC held that in case of unnecessary delay in mercy petion SC can commute death sentence into Life imprisonment. There should be a gap of 14 days between rejection of mercy petition & execution. Person should be informed & legal aid has to be provided for his defence. He should not be kept in solitary confinement & family members should be informed.

(b) Mahammad Arif Case Vs Registrar SC of India. SC has tried to bring transparency in review petition. How review petition will be considered in open court & defence lawyer can put a defence arguement.

(c) PUCL Vs Govt. of MH Case. SC has issued guidelines w.r.t. encounters.

- In case of encounter if the accused is alive he should be given immidiate medical aid.
- Case has to be registered
- The sample of Gun powder, weapons of both policemen & accused will be sent for forensic analysis.
- Investigation by CID or any other police station.
- No award or promotion to policement till the final disposal of appeal.

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Above judgements show that SC is consistently including reasonable procedure in context of death penalty. SC has thrown ball in the court of parliament i.e. Parliament should come up with law.

→ Whether death penalty should be abolished.

There should be some principle of punishment.

There are 3 theories of punishment.

(i) Retributive Theory ie- Revenge.

Revenge should not be basis in civilised society.

Feeling of revenge is understandable from the perspective of the family members of the person who has been killed.

However there are examples where family members themselve requested to commute death sentence.

Sentiment goes/ends with time.

(ii) Deterrence Theory

- There is no correlation b/w deterrence & death penalty & deterrence will not work for those who are ready to sacrifice their life. Deterrence does not work in India for two reasons:

(i) India is a soft state.

(ii) when SC has given rarest of rare doctrine there is a little scope for deterrence.

(iii) Reformative Theory.

Based on Gandhian Idea. to hate end the evil & not evil doer. In case of India reformative approach is better for following reasons:

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(a) SC has itself acknowledged that many decisions were wrongly decided.

(b) Life once taken cannot be given back. If because of the fault of state an innocent person looses life, it will a murder by the state.

(c) Data suggest that more no. of persons awarded death penalty are from poor sections.

(d) Till we do not go for reforming criminal justice system, Police Reform there is no strong legitimate basis to retain death penalty.

(e) We can shift from Death Penalty to Life imprisonment (rigorous) as a better option.

(f) However it is to be noted that prisons in India are hardly the places for reform. Hence there is also a need for Prison Reforms.

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Article 32.

- According to Ambedkar Art. 32 is soul of part III.
- Art. 32 is a part of Basic Structure.
- Art. 32 makes SC sentinel qui vive ie. soldier with the sword.
- SC has introduced -

(a) PIL, epistolary jurisdiction (post card), Suo Moto

- SC has defined PIL as Public Interest Litigation rather than private or political interest. Person should approach not only with clean hands but with clean mind & clear heart. PIL is an important judicial innovation to provide access to justice to the poor misuse will create problem in the objective.

While SC grant writs under Art. 32 it applies the Doctrine of Res judicata, Doctrine of Laches (unnecessary delay) It means that court will protect the right of those who are vigilant about their rights & so person should approach to the court without delay.

Q. Discuss to what extent Indian Constitution reflects the successful reconciliation of alternative perspective.

→ Indian constitution.

- Indian constitution is one of the most interesting case study in the field of understanding constitutional morality.
- It is a revolutionary document through which our leaders sought to transform our society into modern & scientific society.

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the success of democracy in India is a matter of great curiosity considering matters of obstacles like diversity, poverty, backwardness & literacy. credit for the success goes to constitution, we have to accept the exceptional wisdom of the constitutional assembly. If we see the case of other countries in South Asia, constitutions have changed at a short period of time. Indian constitution survived because it is a consensus document. It has reconciled alternative perspective. Though the primary philosophy shaping govt. institutions is liberalism yet other perspectives are also present. the best place to locate alternative perspective is part IV of the constitution It contains the combinations of view points like socialism, Gandhism, multi culturalism, environmentalism & international peace. versatality of the constitution & flexibility which it provides made constitution a 'corner stone of a nation'.

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Q. Keeping in view the political developements in India Explain how the need for National Integration & Urge for regional autonomy can be reconciled.

Ans- Need for National Integration.

Nation is a contested concept.

According to Liberals nation is evolu" linked with Modernisation whereas for Marxist Nationalism is an invented tradition & for Cultural nationalists Nation is natural & spiritual

Nationalism is a western concept which became the basis of achieving solidarity among the different groups following different religions. Post Colonial societies Nationalism in general and India in particular is considered as one of the consequence of the colonial rule. Nationalism still remains a challenging concept in post colonial societies. In case of India Nehru believed, that India is Nation is making. Secularism & federalism, centralised planning has been adopted as a method of Nation Building.

The need for National Integration in general & for India in particular – ① India has suffered years of slavery or because of lack of internal unity which made india vulnerable to external threats. National Integra" is a precondi" for development & good governance so long we don't adopt the ideology of Nation first we will never be able to realise our potential India has a potential to emerge as a major power. Hence, Nat. Integ" is not just a developmental concern but also a strategic concern. However since beginning the movement of India towards the path of Nat. Inte" has not been smooth, Casteism, Communalism, regionalism, linguism, has always challenged the emergence of India as a nation.

Regionalism is a major challenge because it is expressed in territorial terms. Regionalism not only challenges the idea of India but it also challenge the existence of India in concrete sense.

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According to Sanjiv Baruah Regionalism is natural for the subcontinental size polity like India.
According to Paul Brass, Regionalism has been the long term trend of Indian politics.

India has faced regional movements of various intensities ranging from the demand for autonomy from the seperate state to a union. In contemporary times the major challenge is to deal with the regionalism in kashmir as well as in north eastern states.
Different scholars have given diff. interpreta? one of the major cause has been uneven developement, culture of scarcity, Modernisation in traditional society & politics of opposition.

Atul Kohli in his article 'can democracies accomodate ethnic movements' suggest that democracy has been the major factor for ethnic mobilisa? but believes that only democracy has a solution.
the case of Tamil Nationalism & Regionalism in kashmir provides two contrasting examples. In case of Tamil sub nationalism there has been a resolution of the conflict on a permanant basis because of democratic politics of accomoda?. In case of J&K ressolu? has not been that easy because the situa? of kashmir is ettremely complicated. kashmir issue is a multi-dimensional issue & there has been too much involvement of foreign powers. In case of kashmir as well as Punjab govt. have to rely on excessive use of force. ~~Excessive~~ use of force in turn has created greater crisis of legitimacy. In case of kashmir, Inter locutors report has mentioned that the main grievance has been the lack of regional autonomy, excessive inter ference by union govt. in state adminishra? & failure to observe the spirit of article 370. Hence the report suggest to go for greater regional autonomy to address the crisis of nation building.

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Regionalism in itself is not a challenge to Nat. Integra?
It does have a potential to challenge. If not managed in a proper way. According to Scholars regionalism can also address the neglect & uneven development. Hence, regionalism can be seen as crisis of development rather than Nat. Integra?
Sarkaria & Punchhi commission both emphasised on the devolu of powers.

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① Sovereignty and concept of sovereignty.
② Types of sovereignty. (legal, Political, Popular)
③ Monistic Theory of Sovereignty.
④ Features of Monistic Theory.
⑤ Criticism of Monistic Theory.

→ Role of RSS as a pressure group
(History, ideology, their work)
(Christophe Jeffrelot - Article).

→ Write short note on Bhartiya kisan Union and Shetkari Sanghatan — (comparison)

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